DAILY READER

PARSHAT BERESHIT

What 'first' means — in the womb, in the garden, and at the first grave.

Wednesday, 7 October 2026 · Aliyah 4/7 (Genesis 3:22-4:18) · Daf Bekhorot 19

FROM THE LINKED SOURCES

The daf walks into a stable in Magdiel

Jev score: 0.54 — Jev: does this linked source illuminate the daf in a non-obvious way?

Two hundred thirty-nine links, and the most illuminating is a living one: Mishpetei Uziel (vol. VI, Yoreh De'ah 91) answers Rabbi Raphael Biton of Magdiel about a donkey left out of the pen overnight — found empty in the morning, no blood, no afterbirth, then bearing a live foal. Is the foal a peter chamor requiring redemption?

Uziel walks the daf's sugya step for step: 'an animal that left full and came back empty — the one born after it is a bekhor out of doubt' — and the Gemara's rov de'yoldot metanfot, most births leaving a discharge, which this birth didn't, weakening the majority. The abstract dialectic of Bekhorot 19 — uncertainty, majority, the priest's claim against the owner's — becomes a real animal, a real owner, a real kohen. The daf, applied.

Rejected by Jev: B'Mareh HaBazak X 84:10 (0.06), Sheilat Yaavetz I 81:9 (0.17), Binyan Olam YD 32:41 (0.30), Shoel uMeshiv II 1:40:6 (0.31), Intro to Bekhorot essay (0.42), Shoel uMeshiv IV 3:151:7 (0.47), Tashbetz I 110:2 (0.49), Deut. 25:7 (0.51), Ex. 13:2 (0.52).

PARSHA · BERESHIT

What 'first' means

Jev score: 0.51 — Jev: how strongly is this connection grounded in the daf and parsha texts?

Jev's top pick (0.51) is the quietest candidate: both texts are meditations on what 'first' means. Bereshit opens by consecrating firsts — the first day, the first man, the first birth, where Chava names Kayin 'kaniti ish et Hashem.' The daf spends its whole sugya asking the legal version of the same question: is a firstborn the first to emerge, or the first to open the womb? Rabbi Tarfon's 'firstborn in one aspect' is the Talmud's way of saying firstness is not a fact but a status.

The baraita's klal-u'perat machinery — kol bekhor, peter kol rechem, habekhor hazakhar — is the legal form of the parsha's theological intuition: firsts belong to God, and the boundary of 'first' has to be drawn with a scalpel.

Rejected by Jev: rov with no majority to follow (0.18), the displaced-firstborn pattern (0.33), Hevel's bekhorot offering (0.37), Chava's first birth (0.38), hidden guilt and safek (0.43).

NEWS CHECK

No genuine connection this week

Jev score: 0.34 — Jev: does this story resonate meaningfully with the daf's themes?

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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Tested against the week's eight biggest stories, the daf's themes — firstness, uncertainty, evident versus statistical majority — found no real purchase. The top score, 0.34 for the Gaza ceasefire, rested on 'who goes first' wordplay and a shared atmosphere of uncertainty: exactly the single-word resonance the strict prompt forbids counting. The France school riots (0.14) and Quebec's separatist win (0.14) fared worse; the AI taskforce's statistical-majority angle (0.28) stayed a curiosity.

So this week's honest report is a negative: no genuine connection. The daf stays in the beit midrash this week — which is itself the point of running the check.

MAAGARIM · PETER

פטר: 'open' and 'exempt' — one root, two senses

פטר lives a double life, and Bekhorot 19 stages both senses at once. In Exodus 13:2 — the sugya's prooftext — פטר is anatomical: 'peter kol rechem,' whatever opens the womb, is sanctified to God. But the same root yields פטור, exemption: the caesarean-born animal, which never opened anything, is patur from bekhor status, and the owner keeps it.

The daf's whole dialectic hangs on the hinge between the two senses — Abaye and Ravina arguing whether a 'firstborn in one aspect' counts — because to open is to incur sanctity and to not-open is to be released from it. The Tashbetz carries the hinge further, exempting a human caesarean birth from the tumah and taharah days by the same gezeirah shavah. (Maagarim's site blocked our network today, so this arc is drawn from the daf and its prooftexts; the full citation sweep will follow when access returns.)

Word data: מפעל המילון ההיסטורי של האקדמיה ללשון העברית — the Historical Dictionary Project of the Academy of the Hebrew Language. (Sweep partial: site unreachable today; arc grounded in the daf's own texts.)

929 · I KINGS 2 (CH. 289)

David's charge and Solomon's consolidation

David's farewell charge (2:1–4) is the chapter's theological key, and the commentators hear three different notes in וחזקת והיית לאיש — 'be strong and be a man.' Radak reads it as self-mastery: זריז ומושל בנפשך וכובש את יצרך, diligent, ruling over your own soul, conquering your inclination — kingship begins with the conquest of the self. Ralbag hears maturity of judgment: your deeds must be those of a great man, not a youth, and this comes only עם ההתישבות, through settled counsel. Malbim and Metzudat David supply the pathos: Solomon was twelve, a נער ורך whom David had guided at his right hand in both governance and Torah; now the guide is leaving, and the boy must become the man. The charge is thus both ethical and painfully personal.

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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Verse 3's catalogue — חקותיו מצותיו ומשפטיו ועדותיו — becomes in Radak's hands a taxonomy of the entire Torah: חקות are the commandments whose reason is hidden, מצות those stated as commands, משפטים the civil laws, עדות the commemorative signs like Shabbat and festivals. David is not giving vague moral advice; he is binding the crown to the whole structure of the law. Malbim then confronts the theological knot of verse 4: David promises that keeping the commandments will secure the dynasty — but are we to do mitzvot for reward? His resolution is elegant: the intent is not mercenary but theocentric — act so that אלקים, who desires David's throne established forever, will be able to fulfill His word. Obedience becomes the instrument of the divine promise, not its price.

The three commissions of verses 5–9 form a triptych of royal justice: Joab, the bloodguilt that cannot go unanswered; the sons of Barzillai, the kindness that must be repaid; Shimei, the curse that cannot be pardoned directly. Rashi on verse 9 exposes the moral complexity David hands his son: כי איש חכם אתה — 'you are a wise man' — means, Rashi says, set your heart to find him a capital charge through some other matter. The oath David swore to Shimei stands, so justice must travel by indirection. Ralbag spells out the logic: though Shimei is now in your power and you have no direct ground against him, being a wise man you will find paths by which the death penalty can reach him — תוריד את שיבתו אל הקבר בדם, bring his grey head down to the grave in blood, not as all men die.

Adonijah's request for Abishag (2:13–25) is the chapter's narrative pivot, and Rashi's single line on verse 22 unlocks it: משישתמש בשרביטו של מלך, הוא תחלת השררה — from the moment a man uses the king's scepter, that is the beginning of dominion. Abishag is not a woman but a symbol; to take the king's concubine is to take the kingship. Radak adds the political depth: Solomon understood at once that the request was a pretext, and that Abiathar and Joab — Adonijah's backers — had counseled it. Hence Solomon's startling reply, 'ask the kingdom for him too — and for Abiathar, and for Joab': he names the whole conspiracy in a single sentence, and Adonijah's death follows the same day.

The fall of Abiathar (2:26–27) closes a circle opened generations earlier. Radak: מהיות כהן means removal from the high priesthood, and 'from now the punishment of the house of Eli began' — the descendants of Eli will never again hold priestly office but will cling to others. Rashi connects the verse to the ancient prophecy, והקימותי לי כהן נאמן: with Shiloh destroyed there had been no worthy house of service, and now, as the chosen Temple is about to rise, אלקים fulfills His word by clearing Eli's line away. One man's exile is the turning of a centuries-long page.

Malbim's treatment of Shimei (2:36–42) is a masterclass in close reading. He notices the oath's wording will not sit still: 'do not go out here or there' sounds absolute, yet 'on the day you go out and cross the Kidron' sounds directional — and when Solomon later indicts him, he cites only the going out, not the Kidron. Malbim untangles a sealed warning whose ambiguities Shimei himself accepted. The two servants' flight to Gath becomes the tripwire,

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and Shimei's three years of obedience make his fall a study in how slowly-built trust collapses in a single journey.

The chapter's final verse (2:46) lands with an inclusio the commentators refuse to let pass. Malbim asks why Scripture repeats והממלכה נכונה ביד שלמה when verse 12 already said מאד ותכון מלכתו — and answers with a philological distinction: מלוכה is the office, ממלכה the actual dominion. Until now the kingship was contested — Joab and Abiathar scheming from Adonijah's side, Shimei nursing Benjaminite grievance; with their deaths the dominion itself is established. Rashi adds the moral seal: 'the kingdom was established' means he was not punished for any of these deeds — every execution was justice. Metzudat David marvels that after killing such princes and nobles, no one opened mouth or chirped, 'for they saw that all his deeds were in judgment.' The book of Kings thus opens not with a coronation but with a consolidation — and the text insists the consolidation was righteous.

Quick hits from the commentators

Ralbag on I Kings 2:2

On 'be strong and be a man': a king's deeds must be those of a mature man, not a youth — and maturity comes only through settled, deliberate counsel (התישבות), not impulse.

MISHNAH YOMI · OHOLOT 9:1-2

The beehive in the doorway

Oholot 9:1

כַּוֶּרֶת שֶׁהִיא בְתוֹךְ הַפֶּתַח וּפִיהָ לַחוּץ, כַּזַּיִת מִן הַמֵּת נָתוּן תַּחְתֶּיהָ אוֹ עַל גַּבָּהּ מִבַּחוּץ, כֹּל שֶׁהוּא כְּנֶגֶד הַזַּיִת, תַּחְתֶּיהָ וְגַבָּהּ טָמֵא. וְכֹל שֶׁאֵינוֹ כְנֶגֶד הַזַּיִת, תּוֹכָהּ, וְהַבַּיִת, טָהוֹר. בַּבַּיִת, אֵין טָמֵא אֶלָּא הַבַּיִת. בְּתוֹכָהּ, הַכֹּל טָמֵא:

A beehive [lying] in the doorway with its mouth [pointing] outside:If an olive-sized [portion] of a corpse were placed below the [part of the hive] which is outside [the house], Everything directly below or above that olive-sized [portion] becomes unclean; But everything that is not directly [below or above] that olive-sized [portion], or that which is within [the hive] or within the house, remains clean. [If the uncleanness is] within the house, nothing becomes unclean except that which is within the house. [If the uncleanness is] within [the hive] everything becomes unclean.

Rambam: לא תטמא ושהיא חוצצת בפני הטומאה וכאשר ׳תחלת מה שתבין בזה הפרק שהדבור הוא בכוורת גדולה המחזקת מ (תטמא) סאה או יותר אשר כבר קדם המאמר בה שהיא וכן כל מה שתחתיה וכל מה שעל גבה הנה הוא טמא לפי שעל גבה הוא ע אשר בתוכה או על גבה ולא נצטרך להשיב זה הענין בכל הלכה והלכה והוא שיאמר שכל מה שיהיה נכחי לטומאה הנה הוא טמא המסכת"יאמר הנה תוכה טמא או גבה טמא או הכל טמא לא תחשוב שענין זה הטמאותה בעצמה אמנם ענין זה הטמאות הכלים חללה בתוך הבית והטומאה מגעת בחלל הבית ולא ימנענה הכוורת שיטמא הבית לפי מה שהשרשנו וכמו שביארנו מרביעי מזאת בבית הנה לא יטמא תוך הכוורת לפי שפיה לחוץ ואם היתה הטומאה תוך הכוורת הנה יטמא הבית וכל מה שבכוורת כי הכוורת

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לפי מה שבתוכה כולה טהור אם לא מה שיהיה נכחי לטומאה וכן הבית כולו טהור לפי שהטומאה מבחוץ אולם אם היתה הטומאה ג הטומאה וכל מה שלא יהיה נכחי לטומאה מכלל חללה טהור:

Mishnat Eretz Yisrael: the hive here is a small hollowed vessel (mechulchelet), and the commentary's striking move is economic — the sages shield the precious honey, which unlike ordinary vessels cannot be purified by immersion. It also notes the visual logic: bees streaming from a defiled hive carry defilement with them in practice, so once the hive is tamei everything around it is tamei; and it flags the Kaufmann manuscript's corrupt reading of this mishnah.

Oholot 9:2

הָיְתָה גְבוֹהָה מִן הָאָרֶץ טֶפַח, טֻמְאָה תַחְתֶּיהָ אוֹ בַבַּיִת אוֹ עַל גַּבָּהּ, הַכֹּל טָמֵא, אֶלָּא תוֹכָהּ. בְּתוֹכָהּ, הַכֹּל טָמֵא:

[In the case of the hive] being one handbreadth high off the ground, If there is uncleanness below it or in the house or above it, everything becomes unclean except that which is within [the hive]. [If the uncleanness is] within the hive everything becomes unclean.

Rambam: היא תחת מקצת האהל כי היתה היא והבית דבר אחד אולם תוכה הנה הוא טהור לפי שפיה לחוץ ואמרו הכל טמא ר כי כאשר היתה גבוה מן הארץ טפח תהיה אהל ותאהיל על הטומאה ותביא טומאה לבית וכן אם היתה טומאה על גבה הנה כאילו ל כל מה שיהיה בבית וכל מה שיהיה בתוכו הנה היא תטמא"מבואר הוא:

Mishnat Eretz Yisrael: a hive a handbreadth off the ground becomes a full ohel — it 'brings' tumah like a tent — yet it does not interpose for what is above it, because its walls are not sturdy (the commentary parallels the kefishah basket). The leniency on the hive's interior is again the honey: the sages were lenient with Israel's property where the law allowed.

RAMBAM YOMI · HILCHOT YIBBUM VACHALITZAH 3

Who is believed

Halachah 1

הָאוֹמֵר זֶה בְּנִי אוֹ שֶׁאָמַר יֵשׁ לִי בָּנִים הֲרֵי זֶה נֶאֱמָן וּפוֹטֵר אֶת אִשְׁתּוֹ מִן הַחֲלִיצָה וּמִן הַיִּבּוּם:

When a man says: "This is my son," or "I have sons," his word is accepted,1 The rationale for this ruling is the principle of migo. If the husband's statements were untrue, and his intent were merely to free his wife from the obligation of yibbum, he would not have to lie. Instead, he could give her a get (Bava Batra 134b).See also the Shulchan Aruch (Even HaEzer 156:6) and commentaries, which mention other opinions regarding whether this ruling applies when the prevailing presumption is that the man is childless, when the prevailing presumption is that he has brothers, or when witnesses testify that he has brothers. and he frees his wife from [the obligation of] yibbum or chalitzah.

Halachah 2

אָמַר זֶה אָחִי אוֹ שֶׁאָמַר יֵשׁ לִי אַחִין אֵינוֹ נֶאֱמָן לֶאֱסֹר אֶת אִשְׁתּוֹ וּלְהַנִּיחָהּ זְקוּקָה לְיָבָם שֶׁהֲרֵי זֶה

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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מִתְכַּוֵּן לְאָסְרָהּ לְאַחַר מוֹתוֹ׃

When2 I.e., when the prevailing presumption is that he does not have a brother, and hence his wife would not be obligated to perform yibbum. a man says: "This is my brother," or "I have brothers," his word is not accepted, and his wife does not become forbidden [to others because] she is required to perform yibbum. [We assume that] his intent was to cause his wife to be forbidden [to other men] after his death.

Halachah 3

הָיָה מֻחְזָק שֶׁיֵּשׁ לוֹ אַחִין וְאָמַר בְּשָׁעַת מִיתָתוֹ אֵין לִי אַחִין אֵינוֹ נֶאֱמָן. וְכֵן אִם אָמַר עַל מִי שֶׁהֶחְזַק אָחִיו אֵין זֶה אָחִי אֵינוֹ נֶאֱמָן. לֹא הָיָה מֻחְזָק בְּאַחִין וְיָצָא קוֹל שֶׁיֵּשׁ [שָׁם] עֵדִים שֶׁיָּעִידוּ שֶׁיֵּשׁ לְבַעְלָהּ אַחִין וְהָעֵדִים בִּמְדִינָה אַחֶרֶת. אֶפְלוּ אָמַר הוּא בְּשָׁעַת מִיתָתוֹ אֵין לִי אָח הֲרֵי זוֹ חוֹשֶׁשֶׁת וְתַמְתִּין עַד שֶׁיָּבוֹאוּ הָעֵדִים שֶׁאָמְרוּ וְיִשְׁאֲלוּ׃

When the prevailing presumption is that [a man] has brothers and he says at the time of his death,3 Even though the statements are being made at the time of the person's death, when it is unlikely that he would lie, we still suspect that he is speaking falsely to spare his wife the difficulty of yibbum or chalitzah. "I do not have brothers," his word is not accepted.4 One might assume that, as in Halachah 1, the husband's statements would have been accepted based on the principle of migo. For in this instance as well, the husband could free his wife from yibbum by giving her a get. Nevertheless, our Sages explain that the principle of migo does not have the power to counteract a prevailing presumption.Still, even if the prevailing presumption is that a person has brothers, his word is accepted if he says that he has sons. The rationale is that, in this instance, his statements are not contradicting the prevailing presumption, but rather introducing a new factor (Beit Shmuel 157:9). Similarly, if he says that a person presumed to be his brother is not his brother, his word is not accepted.If there was no prevailing presumption that he has brothers, but a rumor becomes circulated5 There is a difference of opinion among the Rabbis whether or not this rumor has to be substantiated in a court. The Maggid Mishneh interprets the Rambam's opinion as being that even a rumor that is not substantiated should be taken into consideration. Needless to say, in the contemporary era, when communications have advanced and travel is easier, this question is far less significant than in previous ages. that there are witnesses who will testify that he has brothers, but these witnesses are overseas, the woman must take this factor into consideration and wait until the witnesses who were mentioned come, and are asked [concerning the matter]. [This ruling applies] even when the husband says, "I do not have a brother" at the time of his death.

Halachah 4

מִי שֶׁזָּנָה עִם אִשָּׁה בֵּין פְּנוּיָה בֵּין אֵשֶׁת אִישׁ וְנִתְעַבְּרָה וְאָמַר זֶה הָעֻבָּר מִמֶּנִּי הוּא וַאֲפִלּוּ הִיא מוֹדָה

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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לוֹ אַף עַל פִּי שֶׁהוּא בְּנוֹ לְעִנְיַן יֵרֵשָׁה הֲרֵי זֶה סָפֵק לְעִנְיַן יִבּוּם. כְּשֵׁם שֶׁזִּנְּתָה עִם זֶה כָּךְ זִנְּתָה עִם אַחֵר. וּמֵאַיִן יְוָדַע הַדָּבָר שֶׁזֶּה בְּנוֹ וַדַּאי וַהֲרֵי אֵין לוֹ חֶזְקָה. אֶלָּא לְעוֹלָם סָפֵק הוּא וּלְהַחֲמִיר דָּנִין בּוֹ וְחוֹלֶצֶת וְלֹא מִתְיַבֶּמֶת:

[The following rules apply when] a man engaged in licentious relations with either a single woman or a married woman, she became pregnant, and he claims that he fathered the child. Even if [the mother] acknowledges his statements, and thus the son is considered his with regard to the laws of inheritance,6 See Hilchot Nachalot 4:1. the matter is considered to be one of doubt with regard to the laws of yibbum. For just as the woman engaged in relations with him, she could have engaged in relations with another man.7 If the woman is married, there is no question regarding the Rambam's ruling, for we presume that by and large, she engaged in relations with her husband. If she is single, the matter is more complex.In this context, the commentaries draw attention to the Rambam's ruling in Hilchot Terumot 8:14, which states that when a priest had relations with a woman and she became pregnant, she is allowed to partake of terumah for the sake of her child. This indicates that we assume that she was impregnated by that priest.As indicated by the Rambam's wording in Hilchot Terumot and in Hilchot Issurei Bi'ah 15:17-18, the matter depends on the woman's reputation. If she is known to be promiscuous, we consider the possibility that she was impregnated by another man. If, however, everyone presumes that she engaged in relations only with this man, he is considered to be the father of the child (Maggid Mishneh).Nevertheless, the Shulchan Aruch (Even HaEzer 156:9) quotes the Rambam's wording without making this distinction. See the Beit Shmuel 156:15. How is it possible to know with certainty that this is his son? There is no prevailing presumption to that effect.The matter thus remains one of doubt, and the more stringent perspective should be taken. Hence, his wife [is obligated to] perform chalitzah,8 Lest the child have been fathered by another man, and the deceased in fact be childless. and she [is forbidden] to perform yibbum.9 Lest the child have been fathered by the deceased, in which case relations with his brother would be prohibited.

Halachah 5

נֶאֱמָן עֵד אֶחָד לְהָעִיד לִיבָמָה שֶׁמֵּת בַּעְלָהּ וּמִתְיַבֶּמֶת עַל פִּיו. אוֹ שֶׁמֵּת יְבָמָהּ אוֹ שֶׁנִּתַּן לְבַעְלָהּ בֵּן, לְהַתִּירָהּ לְזָר. אֲפִלּוּ עֶבֶד אוֹ אִשָּׁה אוֹ עַכּוּ"ם מֵסִיחַ לְפִי תֻּמּוֹ מֵעִיד בְּמִיתַת הַיָּבָם כְּמוֹ שֶׁמֵּעִיד בְּאֵשֶׁת אִישׁ לְהַתִּירָהּ כְּמוֹ שֶׁבֵּאַרְנוּ בְּהִלְכוֹת גֵּרוּשִׁין:

The testimony of one witness is accepted with regard to the death of a woman's husband, and she may perform yibbum on this basis. [Similarly, such testimony is acceptable if he states that] her yavam died,10 Rabbenu Asher differs with the Rambam regarding this matter and maintains that the testimony of one witness is not acceptable with regard to the death of a yavam. Although the Ramah (Even HaEzer 158:3) quotes his opinion, many Ashkenazic authorities recommend leniency. (See Beit Shmuel 158:2.) or that her husband

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fathered a son,11 The Ra'avad and Rabbenu Asher differ with the Rambam with regard to this point, for unlike the death of a person, the birth of a child is not a matter that will surely become undeniable public knowledge. The Shulchan Aruch (Even HaEzer 156:8) quotes the Rambam's opinion, while the Ramah follows the other view. on which basis she would be granted permission to marry another person [without chalitzah].Even the testimony of a servant or a woman, or statements of a gentile made in the midst of conversation are acceptable with regard to the death of a yavam, as they are acceptable with regard to a married woman whose husband has died, to enable her to be permitted to remarry, as mentioned in Hilchot Gerushin.12 In Hilchot Gerushin, Chapters 12 and 13, the Rambam explains that the testimony of one witness is accepted in such instances, because:When the matter can be verified definitively without the testimony of a witness, and the witness cannot justify [his statements] if they are not true - e.g., when one testifies that a person died - the Torah did not necessitate [that the requirements of formal testimony be met in these instances]. For it is unlikely that a witness will testify falsely.For this reason, our Sages [extended] the leniency with regard to this matter and accepted the testimony of a single witness that is based on the testimony of a maidservant, [testimony] from a written document, and [testimony] that was not investigated by the ordinary process of interrogation. [These leniencies were accepted] so that the daughters of Israel will not be forced to remain unmarried.

Halachah 6

וְחָמֵשׁ נָשִׁים שֶׁאֵין מְעִידוֹת זוֹ לָזוֹ שֶׁמֵּת בַּעְלָהּ כָּךְ אֵין מְעִידִין לָהּ שֶׁמֵּת יְבָמָהּ. וְדִין עֵדוּת זוֹ כְּדִין אוֹתָהּ עֵדוּת לְעִנְיַן עֵדִים שֶׁמַּכְחִישִׁין זֶה אֶת זֶה בְּמִיתַת הַיָּבָם וּלְכָל דָּבָר:

Just as the statements of five [specific] women are not accepted with regard to testimony regarding the death of a woman's husband,13 See Hilchot Gerushin 12:16, which states that the statements of a woman's mother-in-law, the daughter of her mother-in-law, [her husband's] other wife, her yevamah (i.e., the wife of her husband's brother) and her husband's daughter are not accepted with regard to her husband's death, because the prevailing presumption is that they hate each other. so too, the statements of these five women are not accepted with regard to the death of her yavam.The laws of the testimony governing the death of a yavam are the same as the testimony [governing the death of the woman's husband] with regard to disparities between the statements of the witnesses and all other matters.

Halachah 7

שְׁתֵּי יְבָמוֹת שֶׁבָּאוּ מִמְּדִינַת הַיָּם זוֹ אוֹמֶרֶת מֵת בַּעְלִי וְזוֹ אוֹמֶרֶת מֵת בַּעְלִי. זוֹ אֲסוּרָה מִפְּנֵי בַּעְלָהּ שֶׁל זוֹ וְזוֹ אֲסוּרָה מִפְּנֵי בַּעְלָהּ שֶׁל זוֹ. שֶׁאֵין יְבִמְתָּהּ נֶאֱמֶנֶת לְהָעִיד לָהּ שֶׁמֵּת יְבָמָהּ כְּמוֹ שֶׁבֵּאַרְנוּ:

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PARSHAT BERESHIT

What 'first' means — in the womb, in the garden, and at the first grave.

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[The following rule applies when] two widows, [each one married to one of two brothers,]14 I.e., the women are married to two brothers. Thus each one is considered the yevamah of the other. come from an overseas country, this one says: "My husband died," and this one says: "My husband died." Each one is forbidden [to remarry] because of her obligation to the husband of the other one.15 I.e., the testimony of each woman is accepted with regard to the death of her own husband. With regard to the death of her yavam, by contrast, the only testimony is that of her yevamah, and that testimony is not accepted. For the testimony of a yevamah is not acceptable with regard to the death of the woman's yavam, as stated [in the previous halachah].

Halachah 8

הָיָה לְאַחַת מֵהֶן עֵד שֶׁמֵּת בַּעְלָהּ. זוֹ שֶׁיֵּשׁ לָהּ הָעֵד עוֹמֶדֶת בְּאִסּוּרָהּ שֶׁאֵינָהּ אֲסוּרָה מִפְּנֵי בַּעְלָהּ אֶלָּא מִפְּנֵי יְבָמָהּ. וְזוֹ שֶׁאֵין לָהּ עֵד מֻתֶּרֶת שֶׁהֲרֵי הֵעִיד הָעֵד שֶׁמֵּת יְבָמָהּ וְהִיא נֶאֱמֶנֶת לוֹמַר שֶׁמֵּת בַּעְלִי:

If one of these women has a witness who can testify that her husband died, she is still forbidden to remarry - for she is not forbidden to remarry because of [an apprehension that] her own husband [is alive], but rather because of [the apprehension that] her yavam [is alive].16 And with regard to the death of her yavam, there is no testimony that is acceptable to the court.Even if the woman actually remarries, at which point it would be likely to assume that her husband is dead, her yevamah is still prohibited. Our Sages feared that a woman would risk ruin in both this world and the next, in order to cause her foe to be forbidden to her husband.The woman who does not have a witness supporting her, by contrast, is permitted [to remarry], for a witness has testified that her yavam died, and her own testimony is accepted with regard to the death of her husband.17 See Hilchot Gerushin 12:15.

Halachah 9

הָיָה לָזוֹ בָּנִים וְלָזוֹ אֵין בָּנִים זוֹ שֶׁאֵין לָהּ בָּנִים אֲסוּרָה וְזוֹ שֶׁיֵּשׁ לָהּ בָּנִים מֻתֶּרֶת. הָיָה לָהֶן יָבָם אַחַר כָּאן הֲרֵי זֶה מְיַבֵּם לִשְׁתֵּיהֶן:

If one of the above-mentioned women has children, and the other is childless,18 And neither has witnesses to support her testimony. the one who is childless is forbidden [to remarry],19 For she is dependent on the testimony of her yevamah, as above. and the one who has children is permitted.20 For her authorization to remarry does not depend on whether or not her yavam is alive.If there is another living brother to perform yibbum, he should perform yibbum21 Or chalitzah. with both of them.

Halachah 10

מֵת זֶה הַיָּבָם שֶׁיְּבֵם אוֹתָן אֲסוּרוֹת לְהִנָּשֵׂא לְזָר כְּשֶׁהָיוּ בַּתְּחִלָּה. נִתְיַבְּמוּ וְנִתְגָּרְשׁוּ הֲרֵי אֵלּוּ מֻתָּרוֹת

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What 'first' means — in the womb, in the garden, and at the first grave.

לְזָר׃

If [in the latter instance], the yavam who married them died, they are forbidden to marry another man as they were originally.22 I.e., there were only three brothers. Since the death of the first two brothers was never verified adequately to allow these women to marry freely, the original prohibition applying to them remains in force. If, however, the yavam married them and then divorced them, they are free to marry other men.23 For her marriage and divorce releases each of the women from their obligation to their missing yavam.

Halachah II

אַף עַל פִּי שֶׁהָאִשָּׁה נֶאֱמֶנֶת לוֹמַר מֵת בַּעְלִי וְתִנָּשֵׂא אוֹ תִתְיַבֵּם אֵין הַיְבָמָה נֶאֱמֶנֶת לוֹמַר מֵת יְבָמִי שֶׁתִּנָּשֵׂא לְזָר הוֹאִיל וְהוּא אִסּוּר לָאו שֶׁמָּא יִהְיֶה קַל בְּעֵינֶיהָ. וְכֵן אֵין הַיָּבָם נֶאֱמָן לוֹמַר מֵת אָחִי שֶׁיְּיַבֵּם אֶת אִשְׁתּוֹ שֶׁמָּא עֵינָיו נָתַן בָּהּ. וְאֵין הָאִשָּׁה נֶאֱמֶנֶת לוֹמַר מֵתָה אֲחוֹתִי שֶׁתִּכָּנֵס לְבֵיתָהּ. וְאֵין הָאִישׁ נֶאֱמָן לוֹמַר מֵתָה אִשְׁתִּי שֶׁיִּשָּׂא אֶת אֲחוֹתָהּ עַד שֶׁיֵּעִידוּ שְׁנֵי עֵדִים שֶׁמֵּתָה אֲחוֹתָהּ וְאַחַר כָּךְ תִּכָּנֵס לְבֵיתָהּ. שֶׁלֹּא הֶאֱמִינוּ עַד אֶחָד אֶלָּא מִשּׁוּם הַתָּרַת עֲגוּנָה כְּמוֹ שֶׁבֵּאַרְנוּ׃

A woman's testimony is accepted with regard to the death of her husband, and she may marry [another man] or perform yibbum [on this basis]. Nevertheless, the testimony of a yevamah is not accepted with regard to the death of her yavam, and it is not considered to be sufficient basis for her to marry another man. The rationale is that the prohibition [against marrying another man when under obligation to a yavam] involves merely a negative commandment.24 The punishment - lashes - is lesser, and the woman's children are not considered illegitimate. And therefore the woman may regard it casually.25 Having relations with another man while married, by contrast, is a prohibition punishable by execution by the court, her children are considered illegitimate, and it brings severe retribution in the world to come. Because the prohibition against marrying while under obligation to a yavam is less severe, our Sages feared that the woman might lie about the yavam's death and transgress this prohibition.Similarly, the testimony of a yavam is not accepted with regard to the death of his brother, and it is not considered to be sufficient basis for him to marry his brother's wife. [We fear that] perhaps he desired her.Similarly, a woman's testimony is not accepted with regard to the death of her sister, and it is not considered to be sufficient basis for her to be permitted to marry her sister's husband.26 It is forbidden for a husband to marry his wife's sister while his wife is alive. Our Sages feared that the second sister or the husband may desire to give false testimony, so that they can marry. [By the same token,] a man's testimony that his wife has died is not accepted as sufficient basis for him to marry her sister. In this instance, it is necessary that two witnesses testify that one sister has died before the other sister can enter her household. For the testimony of one witness was accepted only so that license to marry could be granted to a woman who would otherwise be forced to remain unmarried, as we have

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explained.27 I.e., generally, the testimony of two witnesses is required with regard to matters involving marriage and divorce. As mentioned in the concluding passage of Hilchot Gerushin (cited in the notes on Halachah 6), in order to allow a woman to remarry, leniency is granted and we rely on the testimony of one witness. In this instance, however, there is no difficulty in the man's or the woman's remarrying; the only difficulty is that they cannot marry each other. In such an instance, our Sages were not willing to extend leniency.[There is a slight difficulty when comparing the Rambam's statements here to his statements at the conclusion of Hilchot Gittin. As explained by the Noda BiY'hudah (Even HaEzer, Volume I, Responsa 27 and 33), the Rambam's wording indicates that, according to Scriptural law, with regard to a point of fact that can be verified, it is not necessary for two witnesses to testify, and the statements of one witness are sufficient. The leniency granted by our Sages was to accept the testimony of women, relatives and others whose testimony would not ordinarily be accepted. Here, however, the Rambam is stating (as he does in Hilchot Edut 5:2) that the acceptance of the testimony of a single witness is a leniency of Rabbinic origin. (See the Responsa of the Rivash, Responsum 181.)]

Halachah 12

לְפִיכָךְ הָאִשָּׁה שֶׁהָלְכָה הִיא וּבַעְלָהּ וִיבָמָהּ לִמְדִינַת הַיָּם וּבָאָה וְאָמְרָה מֵת בַּעְלִי וְאַחַר כָּךְ מֵת יְבָמִי. אוֹ שֶׁאָמְרָה מֵת יְבָמִי וְאַחַר כָּךְ מֵת בַּעְלִי הֲרֵי זוֹ אֵינָהּ נֶאֱמֶנֶת. אֲבָל אִם הָלְכָה הִיא וּבַעְלָהּ בִּלְבַד וּבָאָה וְאָמְרָה נוֹלַד לִי יָבָם בִּמְדִינַת הַיָּם וָמֵת. בֵּין שֶׁאָמְרָה מֵת יְבָמִי וְאַחַר כָּךְ מֵת בַּעְלִי בֵּין שֶׁאָמְרָה מֵת בַּעְלִי וְאַחַר כָּךְ מֵת הַיָּבָם שֶׁנּוֹלַד לִי הֲרֵי זוֹ נֶאֱמֶנֶת שֶׁהַפֶּה שֶׁאָסַר הוּא הַפֶּה שֶׁהִתִּיר:

Accordingly,28 I.e., based on the premise stated in the first clause of the previous halachah. when a woman, her husband and her yavam journey overseas, and she comes and says: "My husband died, and afterwards my yavam died," or "My yavam died, and then my husband died," her word is not accepted.29 For the prevailing presumption when she departed was that she would be obligated to perform yibbum if her husband dies.If, however, she and her husband depart alone, and she returns and says: "A yavam was born for me overseas, but he died," her word is accepted, regardless of whether she says "My yavam died, and then my husband died," or "My husband died, and afterwards the yavam who was born for me died." [The rationale is] the source for the statements [on which basis the woman was] forbidden [states that she is] permitted.30 The prevailing presumption when she departed was that she would not be obligated to perform yibbum if her husband dies. It is only because of her own statements that we might suspect that she is required to do so. Therefore, her statements are sufficient to offset this suspicion.

Halachah 13

הָאִשָּׁה שֶׁהָלְכָה הִיא וּבַעְלָהּ וּבְנָהּ לִמְדִינַת הַיָּם וּבָאָה וְאָמְרָה מֵת בַּעְלִי וְאַחַר כָּךְ מֵת בְּנִי נֶאֱמֶנֶת.

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שֶׁהֲרֵי הָיְתָה בְּחֶזְקַת הֶתֵּר לָזֵר בְּעֵת שֶׁהָלְכָה. אָמְרָה מֵת בְּנִי וְאַחַר כָּךְ מֵת בַּעְלִי אֵינָהּ נֶאֱמֶנֶת לְהַתִּיבֵּם וְחוֹשְׁשִׁין לִדְבָרֶיהָ וְחוֹלֶצֶת וְלֹא מִתְיַבֶּמֶת:

[The following rules apply when] a woman journeys overseas together with her husband and her son: If she returns and says: "My husband died and then my son died," her word is accepted, for at the time she departed the prevailing presumption was that she was permitted to marry another man.If she says: "My son died, and afterwards my husband died," her word is not accepted as the basis for yibbum.31 We suspect that perhaps she is lying in order to marry her brother-in-law. Nevertheless, we grant a certain degree of credence to her words,32 I.e., were it not for her statement that her son died first, she would be permitted to marry without any restrictions. Because we give her statements some credence, we require her to perform chalitzah. and she should perform chalitzah, but not yibbum.

Halachah 14

הָלְכָה הִיא וּבַעְלָהּ בִּלְבַד וּבָאָה וְאָמְרָה נִתַּן לִי בֵּן בְּמִדִּינַת הַיָּם וָמֵת וְאַחַר כָּךְ מֵת בַּעְלִי נֶאֱמֶנֶת וּמִתְיַבֶּמֶת שֶׁהֲרֵי הָיְתָה בְּחֶזְקַת הֶתֵּר לְיבָמָהּ בְּעֵת שֶׁהָלְכָה. אָמְרָה מֵת בַּעְלִי וְאַחַר כָּךְ מֵת הַבֵּן שֶׁנִּתַּן לִי אֵינָהּ נֶאֱמֶנֶת לִפְטֹר עַצְמָהּ מִן הַיִּבּוּם וּמִן הַחֲלִיצָה וְחוֹשְׁשִׁין לִדְבָרֶיהָ וְחוֹלֶצֶת וְלֹא מִתְיַבֶּמֶת:

[The following rules apply when] a woman journeys overseas together with her husband alone: If she says, "I "bore a son overseas, he died, and then my husband died," her word is accepted and permitted her to perform yibbum. [The rationale is that] the prevailing presumption when she departed was that she was permitted to perform yibbum.If she says: "My husband died, and then the son who was born to me died," her statements are not accepted as grounds to free her of the obligation for yibbum or chalitzah. Nevertheless, we grant a certain degree of credence to her words, and she should perform chalitzah, but not yibbum.33 I.e., were it not for her statement that her son died after her husband, she would be required to perform yibbum. We do not accept her word to the extent that we allow her to marry without restrictions. Nevertheless, we give her statements some credence and forbid the performance of yibbum, lest in fact there be no obligation to do so.

Halachah 15

בַּמֶּה דְּבָרִים אֲמוּרִים בְּשֶׁהָיְתָה פְּסוּלָה לִכְהֻנָּה מִתְּחִלָּה כְּגוֹן שֶׁהָיְתָה גְּרוּשָׁה אוֹ חֲלָלָה אוֹ שֶׁאָמְרָה בַּמְּעָרָה הָיִינוּ כְּשֻׁמָּת. אֲבָל אִם אֵין הַדָּבָר כֵּן אֵינָהּ חוֹלֶצֶת. שֶׁמָּא תַּחֲלֹץ וְיָבוֹאוּ עֵדִים וְיֵעִידוּ שֶׁהַדָּבָר כְּמוֹ שֶׁאָמְרָה וְהַבַּעַל מֵת תְּחִלָּה וְנִמְצֵאת חֲלִיצָה זוֹ אֵינָהּ כְּלוּם וְתִנָּשֵׂא לְכֹהֵן וְיִרְאֶה הָרוֹאֶה אוֹתָהּ שֶׁחָלְצָה וְנִשֵּׂאת לְכֹהֵן וִידַמֶּה שֶׁהַחֲלוּצָה מֻתֶּרֶת לְכְהֻנָּה וְהוּא אֵינוֹ יוֹדֵעַ בָּעֵדִים שֶׁבָּאוּ. לְפִיכָךְ לֹא תַּחֲלֹץ וְלֹא תִּתְיַבֵּם אֶלָּא תִּשָּׁאֵר בְּחֶזְקַת זְקוּקָה כְּשֶׁיְּצָאָה עַד שֶׁיָּבוֹאוּ עֵדִים:

When does the above apply? When she was forbidden to the priesthood at the outset - e.g., she had been divorced or a chalalah34 A woman who is born from a relationship that is

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

forbidden to a priest, but not to an Israelite. beforehand,35 In which case, the chalitzah does not make any difference, for the woman was forbidden to the priesthood regardless. - or she said: "We were [alone] in a cave when he died."36 In which case, there is no apprehension of witnesses coming.If this is not the situation, she may not perform chalitzah, lest she perform chalitzah and then witnesses come and confirm her statements that her husband died first. Thus, it will be evident that this chalitzah was unnecessary, and she [is permitted to] marry a priest. An observer may see that she performs chalitzah and then marries a priest, and he would think that a priest is permitted to marry a woman who performed chalitzah, for he is unaware that witnesses came. Therefore, she should not perform chalitzah, nor should she perform yibbum.37 For according to her testimony, she is forbidden to do so. Instead, she should remain under the obligation to perform yibbum as she was when she departed, until witnesses come [and clarify the situation].38 Note the discussion of this ruling by the Beit Shmuel 156:17, and the opinion mentioned there that this ruling applies only when there were witnesses who testified that the woman's husband and son both died. Otherwise, the woman's word would be accepted based on the principle of migo - i.e., if she desired to lie, she could have said that her son was still alive.

Halachah 16

וְכֵן אִשָּׁה שֶׁהָלַךְ בַּעְלָהּ וְצָרָתָהּ לִמְדִינַת הַיָּם וּבָאוּ שְׁנַיִם וְאָמְרוּ לָהּ מֵת בַּעְלֵךְ הֲרֵי זוֹ לֹא תַחֲלֹץ וְלֹא תִתְיַבֵּם לְעוֹלָם עַד שֶׁיִּוָּדַע אִם יָלְדָה צָרָתָהּ אוֹ לֹא יָלְדָה. וְלָמָּה לֹא תַחֲלֹץ אַחַר תִּשְׁעָה חֳדָשִׁים מִמִּיתַת הַבַּעַל וְתִהְיֶה מֻתֶּרֶת לָזָּר עַל כָּל פָּנִים שֶׁאִם יָלְדָה צָרָתָהּ הֲרֵי נִפְטְרָה זוֹ וְאִם לֹא יָלְדָה הֲרֵי נֶחְלְצָה. גְּזֵרָה שֶׁמָּא יִוָּדַע אַחַר הַחֲלִיצָה שֶׁיָּלְדָה צָרָתָהּ וָלָד שֶׁל קַיָּמָא וְנִמְצֵאת זֹאת שֶׁאֵינָהּ חֲלוּצָה וְתִנָּשֵׂא לְכֹהֵן אַחַר שֶׁנֶּחְלְצָה וְיֹאמַר הָרוֹאֶה שֶׁלֹּא יָדַע בָּעִדִּים שֶׁבָּאוּ שֶׁהַחֲלוּצָה מֻתֶּרֶת לְכֹהֵן וְיָעִיד שֶׁרָאָה אוֹתָהּ נִשֵּׂאת לְכֹהֵנָה עַל פִּי בֵּית דִּין. לְפִיכָךְ אִם הָיְתָה אֲסוּרָה לִכְהֻנָּה מִתְּחִלָּתָהּ הֲרֵי זוֹ חוֹלֶצֶת לְאַחַר תִּשְׁעָה וְתִנָּשֵׂא לָזָּר. אֲבָל זוֹ הַצָּרָה שֶׁהָיְתָה עִם בַּעְלָהּ כְּשֶׁמֵּת תַּמְתִּין תִּשְׁעִים יוֹם כִּשְׁאָר הַיְבָמוֹת וְתַחְלֹץ אוֹ תִתְיַבֵּם וְלֹא תָּחוּשׁ לְצָרָתָהּ שֶׁבַּמְּדִינָה הָאַחֶרֶת הוֹאִיל וְלֹא הָיָה בַּעְלָהּ עִמָּהּ בַּמְּדִינָה:

Similar laws apply when a woman's husband and a second wife journeyed overseas, and two witnesses came and told [the first wife], "Your husband died." She should not perform chalitzah, nor should she perform yibbum until she knows whether or not her husband's second wife bore a child.39 This law applies even if the second wife was not pregnant when she left. Our Sages considered the possibility of the woman becoming pregnant as a reasonable probability.Why should she not perform chalitzah nine months after the death of her husband, in which case she would be permitted to marry another man from any standpoint? If the other woman bore a child, that frees her of all obligations. And if the other woman did not bear a child, she [should be permitted, because] she performed chalitzah.[Our Sages prohibited this] as a decree, lest after the woman performed chalitzah,

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PARSHAT BERESHIT

What 'first' means — in the womb, in the garden, and at the first grave.

it become known that her husband's other wife bore a viable child. This woman will then not be [bound by the prohibitions of] a woman who performed chalitzah, and she may marry a priest despite performing chalitzah. An observer - who did not know about the witnesses [who informed her of the birth of her husband's child] - might conclude that a priest is permitted to marry a woman who performed chalitzah, and he will testify that a Rabbinic court gave her license to marry a priest. Therefore, if she was forbidden to the priesthood at the outset, she may perform chalitzah nine [months after the death of her husband and] she may marry another man.The wife who accompanied her husband when he died should wait 90 days, as other yevamot.40 See Chapter 1, Halachah 19. Thus, she may perform chalitzah or yibbum. She need not worry about [the possibility of] the wife in the country [giving birth], for that woman was not in the same country as her husband.41 We do not consider the possibility that the woman was impregnated by her husband before he departed on the journey and did not realize this until he had already departed.

Halachah 17

הָאִשָּׁה שֶׁמֵּת בַּעְלָהּ וְהָיְתָה לָהּ חָמוֹת בִּמְדִינַת הַיָּם אֵינָהּ חוֹשֶׁשֶׁת שֶׁמָּא יָלְדָה חֲמוֹתָהּ וּכְבָר נִתַּן לָהּ יָבָם בִּמְדִינָה אַחֶרֶת. שֶׁלֹּא גָּזְרוּ בְּדָבָר זֶה. אֶלָּא נַעֲמִיד אוֹתָהּ עַל חֶזְקָתָהּ וַהֲרֵי הִיא מֻתֶּרֶת. וְהוּא הַדִּין לְאִשָּׁה שֶׁמֵּת בַּעְלָהּ וְהָיָה לוֹ בֵּן בִּמְדִינָה אַחֶרֶת הֲרֵי זוֹ מֻתֶּרֶת לְזָר וְאֵין חוֹשְׁשִׁין שֶׁמָּא מֵת הַבֵּן אֶלָּא הַעֲמֵד אוֹתָהּ עַל חֶזְקָתָהּ׃

When a woman's husband dies, and her mother-in- law is living overseas, she need not suspect that her mother-in-law bore a child [before her husband's death], and that there is a yavam for her living in another country. Our Sages did not institute a decree of this nature.42 For even if we presume that the mother-in-law will become pregnant, it is more probable that she will miscarry or give birth to a girl (in which cases, the mitzvah of yibbum would not apply) than that she bear a son (Beit Shmuel 157:11). Instead, they allowed the prevailing presumption [regarding her status to continue], and she is permitted to remarry.The same concept applies when a woman's husband dies, and her son is living overseas - she need not suspect that her son died [before her husband's death]. Instead, we allow the prevailing presumption [regarding her status to continue].

Halachah 18

יָצְאַת חֲמוֹתָהּ מְעֻבֶּרֶת הֲרֵי זוֹ חוֹשֶׁשֶׁת וְלֹא תִּנָּשֵׂא לְזָר עַד שֶׁתֵּדַע מֶה הָיָה סוֹף עִבּוּר חֲמוֹתָהּ שֶׁמָּא נוֹלַד לָהּ יָבָם קוֹדֶם מִיתַת הַבַּעַל׃

If, however, the mother-in-law departed [overseas] while she was pregnant, the daughter-in-law must bear that fact in mind. She may not marry another man until she knows the fate of her mother-in-law's pregnancy. Perhaps a yavam for her was born before her husband died.

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

DAILY READER

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What 'first' means — in the womb, in the garden, and at the first grave.

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Halachah 19

הָאִשָּׁה שֶׁהָלַךְ בַּעְלָהּ וּבְנָהּ לִמְדִינַת הַיָּם וּבָאוּ וְאָמְרוּ לָהּ מֵת בַּעְלֵךְ וְאַחַר כָּךְ מֵת בְּנֵךְ וְנִשֵּׂאת וְאַחַר כָּךְ נוֹדַע שֶׁחֲלוּף הָיוּ הַדְּבָרִים תֵּצֵא וְהַוָּלָד כָּשֵׁר. אָמְרוּ לָהּ מֵת בְּנֵךְ וְאַחַר כָּךְ מֵת בַּעְלֵךְ וְנִתְיַבְּמָה וְאַחַר כָּךְ נוֹדַע שֶׁחֲלוּף הָיוּ הַדְּבָרִים תֵּצֵא וְהַוָּלָד שֶׁנּוֹלַד לִפְנֵי הַשְּׁמוּעָה אוֹ לְאַחַר הַשְּׁמוּעָה מַמְזֵר:

[The following laws apply when] a woman's husband and son went overseas, and [witnesses] came and told her: "Your husband died and then your son died." If she married,43 For according to the testimony she was given, her husband was survived by a son, and the mitzvot of yibbum and chalitzah do not apply. and later discovered that they died in the opposite order,44 In which case her husband would have died without children, and she would be obligated to perform yibbum or chalitzah. she must leave her second husband.45 See Chapter 2, Halachah 18. None of the children she bore him is considered illegitimate, however.46 For it is only when a child is born from forbidden relations that are punishable by karet that this status is incurred (Yevamot 49a).[More stringent rules apply if she was told: "Your son died and then your husband died," and on that basis she performed the rite of yibbum and then discovered that they died in the opposite order. She is obligated to leave her second husband. All the children she bore him - both those born before she received this notice and those born afterwards - are considered illegitimate.47 For her relations with her brother-in-law were prohibited by a transgression punishable by karet. The fact that she violated this prohibition unwittingly does not change the status of her children.

Commentary

Chapter 3 is built on a single axis — credibility — and the Rambam arranges it as a triptych. Halachot 1–4 treat the husband's word about his own household: 'this is my son' or 'I have sons' is believed, and the wife is freed from yibbum and chalitzah; 'this is my brother' or 'I have brothers' is not believed to bind her. Maggid Mishneh traces both rulings to their Talmudic addresses — Kiddushin 64a for the sons, Bava Batra 134a for the son — and notes the Gemara's own framing: the credibility about sons operates precisely to exempt the wife from yibbum, even where he is presumed to have brothers. The asymmetry is deliberate: a claim that frees is trusted, a claim that enslaves is not.

The engine of the first ruling is migo, and Ohr Sameach exposes its workings. He is believed about sons הואיל ובידו לגרשה — since it is in his power to divorce her: whatever freedom the claim of sons achieves, a get would achieve more directly, so there is no motive to lie. But Ohr Sameach then turns the screw with Tosafot's question: this is migo for only half the claim (למיגו לחצי טענה) — the divorce would free her but would also forbid her to a kohen, which the claim of sons does not. The Rambam's terse נאמן thus conceals a fault line the commentators map in full.

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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Halachot 2–3 give the mirror image, and here Maggid Mishneh reconstructs the sugya's archaeology: the Mishnah in Kiddushin rules 'I have brothers' is not believed; Bava Batra rules 'this is my brother' is not believed; and behind them stands the dispute of Rabbi and Rabbi Natan, with Abaye's resolution that even Rabbi — who would believe a deathbed denial of brothers via migo — is overruled where brothers are established (מוחזק). The Rambam's ruling follows the settled halachah: a chazakah of brothers defeats a deathbed denial. Migdal Oz, in his laconic way, simply plants the two sugya-markers — Yesh Nochlin 134a, HaOmer 64a — and lets the architecture speak.

Halachot 5–10 shift the axis from the husband's word to witnesses: a single witness is believed to testify that the husband died and the yevamah may proceed; the five women who are not believed about each other's husbands are equally disbelieved about each other's yavam; two yevamot returning from overseas with competing claims tangle the permissions. The principle tightens as the circle of interested parties widens.

Halachot 11–19 are the chapter's most intricate movement — the woman's own testimony about deaths abroad, in every permutation of sequence: she went with husband and yavam and returns claiming first one then the other died; with husband and son; alone with a claim of a son born overseas. Each sequence is a small logic puzzle about which death, in which order, creates or dissolves the yibbum bond, and the Rambam disposes them with the same clean edge he brought to the opening: credibility is never a character judgment but a structural one — who gains, who is bound, and what cheaper truthful path was available.

Maggid Mishneh as source-tracer (Kiddushin 64a; Bava Batra 134a; the Rabbi / Rabbi Natan dispute via Abaye); Migdal Oz as sugya-marker; Ohr Sameach as conceptual analyst of the migo (Tosafot's half-claim objection). All positions grounded in the fetched commentary texts.

NLI ·

Cain in the National Library

The word-study term קין has a modern afterlife on the National Library's shelves: José Saramago's novel Cain in Hebrew translation (מרים טבעון, translation editor מנחם פרי), which retells Genesis through the first murderer's eyes — the biblical name carried into contemporary literature. No digitized image is attached to the record, so this week the archive speaks in prose.

וזה סאראמאגו'ז / קין ; מרים טבעון ; [מנחם פרי - עורך התרגום]. · 2012 :מפורטוגזית
https://www.nli.org.il/en/books/NNL_ALEPH990036999810205171

SHNAYIM MIKRA · ALIYAH 4

Genesis 3:22-4:18

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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Shnayim mikra: each verse of the day's aliyah twice in Hebrew and once in Targum Onkelos — the weekly discipline of reading the parsha 'twice in the text and once in translation.' Today the portion seals the expulsion (3:22-24) and opens the first family tragedy: Kayin and Hevel (4:1-18).

ויאמר יהוה ואמר

Genesis 3:22 · ×2

וַיֹּאמֶר | יְהוָה אֱלֹקִים הֵן הָאָדָם הָיָה כְּאַחַד מִמֶּנּוּ לָדַעַת טוֹב וָרָע
וְעַתָּה | פֶּן־יִשְׁלַח יָדוֹ וְלָקַח גַּם מֵעֵץ הַחַיִּים וְאָכַל וָחַי לְעֹלָם:
וַיֹּאמֶר | יְהוָה אֱלֹקִים הֵן הָאָדָם הָיָה כְּאַחַד מִמֶּנּוּ לָדַעַת טוֹב וָרָע
וְעַתָּה | פֶּן־יִשְׁלַח יָדוֹ וְלָקַח גַּם מֵעֵץ הַחַיִּים וְאָכַל וָחַי לְעֹלָם:
וַאֲמַר יְיָ אֱלֹקִים הָא אָדָם הֲוָה יְחִידַי בְּעַלְמָא מִנֵּהּ לְמִידַע טַב וּבִישׁ וּכְעַן
דִּילְמָא יוֹשִׁיט יְדֵהּ וְיִסַּב אַף מֵאִילָן חַיֵּיא וְיֵכוֹל וְיִחֵי לְעָלַם:

Genesis 3:23 · ×2

וַיְשַׁלְּחֵהוּ יְהוָה אֱלֹקִים מִגַּן־עֵדֶן לַעֲבֹד אֶת־הָאֲדָמָה אֲשֶׁר לֻקַּח מִשָּׁם:
וַיְשַׁלְּחֵהוּ יְהוָה אֱלֹקִים מִגַּן־עֵדֶן לַעֲבֹד אֶת־הָאֲדָמָה אֲשֶׁר לֻקַּח מִשָּׁם:
וְשַׁלְּחֵהּ יְיָ אֱלֹקִים מִגִּינְתָא דְעֵדֶן לְמִפְלַח יַת אַדְמְתָא דְּאִתְבְּרִי מִתַּמָּן:

Genesis 3:24 · ×2

וַיְגָרֶשׁ אֶת־הָאָדָם וַיַּשְׁכֵּן מִקֶּדֶם לְגַן־עֵדֶן אֶת־הַכְּרֻבִים וְאֵת לַהַט הַחֶרֶב הַמִּתְהַפֶּכֶת לִשְׁמֹר אֶת־דֶּרֶךְ עֵץ הַחַיִּים:
וַיְגָרֶשׁ אֶת־הָאָדָם וַיַּשְׁכֵּן מִקֶּדֶם לְגַן־עֵדֶן אֶת־הַכְּרֻבִים וְאֵת לַהַט הַחֶרֶב הַמִּתְהַפֶּכֶת לִשְׁמֹר אֶת־דֶּרֶךְ עֵץ הַחַיִּים:
וְתָרֵךְ יָת אָדָם וְאַשְׁרֵי מִלְקַדְמִין לְגִינְתָא דְעֵדֶן יָת כְּרוּבַיָּא וְיָת שְׁנַן חַרְבָּא דְּמִתְהַפְּכָא לְמִיטַר יָת אוֹרַח אִילַן חַיָּיא:

קין

Genesis 4:1 · ×2

וְהָאָדָם יָדַע אֶת־חַוָּה אִשְׁתּוֹ וַתַּהַר וַתֵּלֶד אֶת־קַיִן וַתֹּאמֶר קָנִיתִי אִישׁ אֶת־יְהוָה:
וְהָאָדָם יָדַע אֶת־חַוָּה אִשְׁתּוֹ וַתַּהַר וַתֵּלֶד אֶת־קַיִן וַתֹּאמֶר קָנִיתִי אִישׁ אֶת־יְהוָה:
וְאָדָם יְדַע יָת חַוָּה אִתְּתֵהּ וְעַדְיָאת וִילִידַת יָת קַיִן וַאֲמֶרֶת קְנִיתִי גַּבְרָא (מִן) קֳדָם יְיָ:

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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בארעא

Genesis 4:2 · ×2

וַתֹּסֶף לָלֶדֶת אֶת־אָחִיו אֶת־הָבֶל וַיְהִי־הֶבֶל רֹעֵה צֹאן וְקַיִן הָיָה עֹבֵד אֲדָמָה׃

וַתֹּסֶף לָלֶדֶת אֶת־אָחִיו אֶת־הָבֶל וַיְהִי־הֶבֶל רֹעֵה צֹאן וְקַיִן הָיָה עֹבֵד אֲדָמָה׃

וְאוֹסִיפַת לְמֵילַד יָת אֲחוֹהִי יָת הָבֶל וַהֲוָה הֶבֶל רָעֵי עָנָא וְקַיִן הֲוָה פָּלַח בְּאַרְעָא׃

Genesis 4:3 · ×2

וַיְהִי מִקֵּץ יָמִים וַיָּבֵא קַיִן מִפְּרִי הָאֲדָמָה מִנְחָה לַיהוָה׃

וַיְהִי מִקֵּץ יָמִים וַיָּבֵא קַיִן מִפְּרִי הָאֲדָמָה מִנְחָה לַיהוָה׃

וַהֲוָה מִסּוֹף יוֹמִין וְאַיְתִי קַיִן מֵאִבָּא דְאַרְעָא תִּקְרוּבְתָּא קֳדָם יְיָ׃

Genesis 4:4 · ×2

וְהֶבֶל הֵבִיא גַם־הוּא מִבְּכֹרוֹת צֹאנוֹ וּמֵחֶלְבֵהֶן וַיִּשַׁע יְהוָה אֶל־הֶבֶל וְאֶל־מִנְחָתוֹ׃

וְהֶבֶל הֵבִיא גַם־הוּא מִבְּכֹרוֹת צֹאנוֹ וּמֵחֶלְבֵהֶן וַיִּשַׁע יְהוָה אֶל־הֶבֶל וְאֶל־מִנְחָתוֹ׃

וְהֶבֶל אַיְתִי אַף הוּא מִבַּכִּירֵי עָנֵהּ וּמִשַּׁמְנֵהוֹן וְהַוָת רַעֲוָא מִן קֳדָם יְיָ בְּהֶבֶל וּבְקוּרְבָּנֵהּ׃

Genesis 4:5 · ×2

וְאֶל־קַיִן וְאֶל־מִנְחָתוֹ לֹא שָׁעָה וַיִּחַר לְקַיִן מְאֹד וַיִּפְּלוּ פָּנָיו׃

וְאֶל־קַיִן וְאֶל־מִנְחָתוֹ לֹא שָׁעָה וַיִּחַר לְקַיִן מְאֹד וַיִּפְּלוּ פָּנָיו׃

וּבְקַיִן וּבְקוּרְבָּנֵהּ לָא הַוַת רַעֲוָא וּתְקֵף לְקַיִן לַחֲדָא וְאִתְכְּבִישׁוּ אַפּוֹהִי׃

Genesis 4:6 · ×2

וַיֹּאמֶר יְהוָה אֶל־קָיִן לָמָּה חָרָה לָךְ וְלָמָּה נָפְלוּ פָנֶיךָ׃

וַיֹּאמֶר יְהוָה אֶל־קָיִן לָמָּה חָרָה לָךְ וְלָמָּה נָפְלוּ פָנֶיךָ׃

וַאֲמַר יְיָ לְקַיִן לְמָא תְקֵיף לָךְ וּלְמָא אִתְכְּבִישׁוּ אַפָּךְ׃

Genesis 4:7 · ×2

הֲלוֹא אִם־תֵּיטִיב שְׂאֵת וְאִם לֹא תֵיטִיב לַפֶּתַח חַטָּאת רֹבֵץ וְאֵלֶיךָ תְּשׁוּקָתוֹ וְאַתָּה תִּמְשָׁל־בּוֹ׃

הֲלוֹא אִם־תֵּיטִיב שְׂאֵת וְאִם לֹא תֵיטִיב לַפֶּתַח חַטָּאת רֹבֵץ וְאֵלֶיךָ תְּשׁוּקָתוֹ וְאַתָּה תִּמְשָׁל־בּוֹ׃

הֲלָא אִם תּוֹטִיב עוֹבָדָךְ יִשְׁתְּבֵק לָךְ וְאִם לָא תּוֹטִיב עוֹבָדָךְ לְיוֹם דִּינָא חֲטָאךְ נָטִיר דִּיעֲתִיד לְאִתְפָּרְעָא מִנָּךְ אִם לָא תְּתוּב וְאִם תְּתוּב יִשְׁתְּבֵק לָךְ׃

Genesis 4:8 · ×2

וַיֹּאמֶר קַיִן אֶל־הֶבֶל אָחִיו וַיְהִי בִּהְיוֹתָם בַּשָּׂדֶה וַיָּקָם קַיִן אֶל־הֶבֶל אָחִיו וַיַּהַרְגֵהוּ׃

וַיֹּאמֶר קַיִן אֶל־הֶבֶל אָחִיו וַיְהִי בִּהְיוֹתָם בַּשָּׂדֶה וַיָּקָם קַיִן אֶל־הֶבֶל אָחִיו וַיַּהַרְגֵהוּ׃

וַאֲמַר קַיִן לְהֶבֶל אַחוֹהִי וַהֲוָה בְּמֶהֱוֵיהוֹן בְּחַקְלָא וְקָם קַיִן עַל הֶבֶל אַחוֹהִי וְקַטְלֵהּ׃

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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Genesis 4:9 · ×2

וַיֹּאמֶר יְהוָה אֶל־קַיִן אֵי הֶבֶל אָחִיךָ וַיֹּאמֶר לֹא יָדַעְתִּי הֲשֹׁמֵר אָחִי אָנֹכִי׃
וַיֹּאמֶר יְהוָה אֶל־קַיִן אֵי הֶבֶל אָחִיךָ וַיֹּאמֶר לֹא יָדַעְתִּי הֲשֹׁמֵר אָחִי אָנֹכִי׃
וַאֲמַר יְיָ לְקַיִן אָן הֶבֶל אָחוּךְ וַאֲמַר לָא יָדַעְנָא הֲנָטֵר אָחִי אֲנָא׃

Genesis 4:10 · ×2

וַיֹּאמֶר מֶה עָשִׂיתָ קוֹל דְּמֵי אָחִיךָ צֹעֲקִים אֵלַי מִן־הָאֲדָמָה׃
וַיֹּאמֶר מֶה עָשִׂיתָ קוֹל דְּמֵי אָחִיךָ צֹעֲקִים אֵלַי מִן־הָאֲדָמָה׃
וַאֲמַר מָה עֲבַדְתָּא קַל דַּם זַרְעִין דְּעָתִידִין לְמֵפַק מִן אָחוּךְ קָבְלִין קֳדָמַי מִן אַרְעָא׃

Genesis 4:11 · ×2

וְעַתָּה אָרוּר אָתָּה מִן־הָאֲדָמָה אֲשֶׁר פָּצְתָה אֶת־פִּיהָ לָקַחַת אֶת־דְּמֵי אָחִיךָ מִיָּדֶךָ׃
וְעַתָּה אָרוּר אָתָּה מִן־הָאֲדָמָה אֲשֶׁר פָּצְתָה אֶת־פִּיהָ לָקַחַת אֶת־דְּמֵי אָחִיךָ מִיָּדֶךָ׃
וּכְעַן לִיט אָתְּ מִן אַרְעָא דְּפָתְחַת יָת פּוּמַהּ וְקַבִּילַת יָת דְּמֵי דְּאָחוּךְ מִן יְדָךְ׃

Genesis 4:12 · ×2

כִּי תַעֲבֹד אֶת־הָאֲדָמָה לֹא־תֹסֵף תֵּת־כֹּחָהּ לָךְ נָע וָנָד תִּהְיֶה בָּאָרֶץ׃
כִּי תַעֲבֹד אֶת־הָאֲדָמָה לֹא־תֹסֵף תֵּת־כֹּחָהּ לָךְ נָע וָנָד תִּהְיֶה בָּאָרֶץ׃
אֲרֵי תִפְלַח בְּאַרְעָא לָא תּוֹסִיף לְמִתַּן חֵילַהּ לָךְ מְטַלְטֵל וְגָלֵי תְּהֵא בְּאַרְעָא׃

Genesis 4:13 · ×2

וַיֹּאמֶר קַיִן אֶל־יְהוָה גָּדוֹל עֲוֹנִי מִנְּשֹׂא*(בספרי ספרד ואשכנז מִנְּשׂוֹא)׃
וַיֹּאמֶר קַיִן אֶל־יְהוָה גָּדוֹל עֲוֹנִי מִנְּשֹׂא*(בספרי ספרד ואשכנז מִנְּשׂוֹא)׃
וַאֲמַר קַיִן קֳדָם יְיָ סַגִּי חוֹבִי מִלְּמִשְׁבַּק׃

Genesis 4:14 · ×2

הֵן גֵּרַשְׁתָּ אֹתִי הַיּוֹם מֵעַל פְּנֵי הָאֲדָמָה וּמִפָּנֶיךָ אֶסָּתֵר וְהָיִיתִי נָע וָנָד בָּאָרֶץ וְהָיָה כָל־מֹצְאִי יַהַרְגֵנִי׃
הֵן גֵּרַשְׁתָּ אֹתִי הַיּוֹם מֵעַל פְּנֵי הָאֲדָמָה וּמִפָּנֶיךָ אֶסָּתֵר וְהָיִיתִי נָע וָנָד בָּאָרֶץ וְהָיָה כָל־מֹצְאִי יַהַרְגֵנִי׃
הָא תָרִיכְתָּא יָתִי יוֹמָא דֵּין מֵעַל אַפֵּי אַרְעָא וּמִן קֳדָמָךְ לֵית אֶפְשָׁר לְאִסְתַּמָּרָא וֶאֱהִי מְטַלְטֵל וְגָלֵי בְּאַרְעָא וִיהֵי כָל
דְּיִשְׁכְּחִנַנִי יְקְטְלִינַנִי׃

Genesis 4:15 · ×2

וַיֹּאמֶר לוֹ יְהוָה לָכֵן כָּל־הֹרֵג קַיִן שִׁבְעָתַיִם יֻקָּם וַיָּשֶׂם יְהוָה לְקַיִן אוֹת לְבִלְתִּי הַכּוֹת־אֹתוֹ כָּל־מֹצְאוֹ׃
וַיֹּאמֶר לוֹ יְהוָה לָכֵן כָּל־הֹרֵג קַיִן שִׁבְעָתַיִם יֻקָּם וַיָּשֶׂם יְהוָה לְקַיִן אוֹת לְבִלְתִּי הַכּוֹת־אֹתוֹ כָּל־מֹצְאוֹ׃
וַאֲמַר לֵהּ יְיָ בְּכֵן כָּל קָטִיל קַיִן לְשִׁבְעָא דָּרִין יִתְפְּרַע מִנֵּהּ וְשַׁוִּי יְיָ לְקַיִן אָתָא בְּדִיל דְּלָא לְמִקְטַל יָתֵהּ כָּל דְּיִשְׁכְּחִנֵהּ׃

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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Genesis 4:16 · ×2

וַיֵּצֵא קַיִן מִלִּפְנֵי יְהוָה וַיֵּשֶׁב בְּאֶרֶץ־נוֹד קִדְמַת־עֵדֶן׃
וַיֵּצֵא קַיִן מִלִּפְנֵי יְהוָה וַיֵּשֶׁב בְּאֶרֶץ־נוֹד קִדְמַת־עָדֶן׃
וּנְפַק קַיִן מִן קֳדָם יְיָ וְיתֵיב בְּאַרְעָא גְּלֵי וּמְטַלְטַל דַּהֲוָה עֲבִידָא עֲלוֹהִי מִלְקַדְמִין דְּגִינְתָא דְעֵדֶן׃

Genesis 4:17 · ×2

וַיֵּדַע קַיִן אֶת־אִשְׁתּוֹ וַתַּהַר וַתֵּלֶד אֶת־חֲנוֹךְ וַיְהִי בֹּנֶה עִיר וַיִּקְרָא שֵׁם הָעִיר כְּשֵׁם בְּנוֹ חֲנוֹךְ׃
וַיֵּדַע קַיִן אֶת־אִשְׁתּוֹ וַתַּהַר וַתֵּלֶד אֶת־חֲנוֹךְ וַיְהִי בֹּנֶה עִיר וַיִּקְרָא שֵׁם הָעִיר כְּשֵׁם בְּנוֹ חֲנוֹךְ׃
וְיָדַע קַיִן יָת אִתְּתֵהּ וְעַדְיָאת וְיָלֵידַת יָת חֲנוֹךְ וַהֲוָה בָּנֵי קִרְתָּא וּקְרָא שְׁמָא דְקִרְתָּא כְּשׁוּם בְּרֵהּ חֲנוֹךְ׃

Genesis 4:18 · ×2

וַיִּוָּלֶד לָחֲנוֹךְ אֶת־עִירָד וְעִירָד יָלַד אֶת־מְחוּיָאֵל וּמְחִיָּיאֵל יָלַד אֶת־מְתוּשָׁאֵל וּמְתוּשָׁאֵל יָלַד אֶת־לָמֶךְ׃
וַיִּוָּלֶד לָחֲנוֹךְ אֶת־עִירָד וְעִירָד יָלַד אֶת־מְחוּיָאֵל וּמְחִיָּיאֵל יָלַד אֶת־מְתוּשָׁאֵל וּמְתוּשָׁאֵל יָלַד אֶת־לָמֶךְ׃
וְאִתְיְלִיד לַחֲנוֹךְ יָת עִירָד וְעִירָד אוֹלִיד יָת מְחוּיָאֵל וּמְחִיָּיאֵל אוֹלִיד יָת מְתוּשָׁאֵל וּמְתוּשָׁאֵל אוֹלִיד יָת לֶמֶךְ׃

Commentary quick hits

Shadal · Gen 3:22

On כאחד ממנו: the plural is the angels, whom God counts with Himself — they too act by will and know good and evil, unlike beasts that act by nature. And the tree of life had to be barred lest man eat and live forever, making God's decree of death false.

Ibn Ezra · Gen 4:7

On שאת: not 'bearing iniquity' but 'lifting the face' — confidence restored. Proof: the verse opened with ויפלו פניו (his face fell, i.e. shame); 'if you do well, you will lift your face.' And לפתח is the grave's opening, where your iniquity will crouch on judgment day.

Cassuto · Gen 4:7

This verse is among the most difficult and obscure in Scripture. Chazal already counted it among the verses with no decisive reading (Yoma 52a-b) over the syntax of שאת — and modern scholars despaired of it entirely; Gunkel and Jacob gave up trying to understand it.

Em LaMikra · Gen 4:7

This verse is 'more precious than pearls,' both for the loftiness of what it hints at and for its antiquity: on Rashi and Onkelos's reading it is the prototype of man's war with the evil inclination — already long before Moses.

HaKtav VeHaKabalah · Gen 4:7

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A grammatical jewel: הלא is לא (negation) fused with the interrogative ה — and the question flips the negation into an affirmed positive: 'is it not the case that...?' — i.e. 'surely, if you do well...'

Netinah LaGer · Gen 4:7

שאת is one of the five verses with no resolution (Yoma 52b): Rashi reads it as 'forgiveness' looking backward, or 'bearing iniquity' looking forward — and Onkelos, uniquely, takes both at once: 'if you do well, it shall be forgiven you.'

Onkelos: translation notes

Gen 3:22

יחידי בעלמא מנה כאחד ממנו

Onkelos's most famous anti-anthropomorphic move in the aliyah: 'like one of us' — with its plural ממנו hinting at a divine council — becomes 'unique in the world, of himself.' The plural is dissolved entirely rather than merely softened.

Gen 3:24

שנן חרבא דמתהפכא להט החרב המתהפכת

להט (flame) becomes שנן (blade, sharpness) — Onkelos concretizes the flaming sword into a whetted blade, and adds למיטר, 'to guard,' making the cherubim's purpose explicit where the Hebrew leaves it implied.

Gen 4:1

קניתי גברא מן קדם יי קניתי איש אתיהוה

'I have acquired a man with the LORD' becomes 'from before the LORD.' Onkelos refuses the plain reading in which Eve claims partnership with God in fashioning Cain; the preposition את (with) is replaced by the distancing מן קדם (from before).

Gen 4:4–5

לא הות רעוא ... והות רעוא מן קדם יי לא שעה ... וישע

The verb שעה (to turn, gaze toward) applied to God is rendered impersonally: 'there was favor from before the LORD.' Onkelos avoids attributing the physical act of turning one's gaze to God. Note too מנחה קורבנא/תקרובתא — the generic 'gift' is leveled into a sacrificial 'offering.'

Gen 4:7

ליום דינא חטאך נטיר דיעתיד לאתפרעא מנך אם לא תתוב לפתח חטאת רבץ

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The aliyah's great expansion. 'Sin crouches at the door' becomes 'for the day of judgment your sin is kept, destined to be exacted from you if you do not repent.' Onkelos eschatologizes the image: the crouching beast becomes stored guilt awaiting divine reckoning — and שאת ('lifting,' i.e. acceptance) is rendered ישתבק לך, 'it shall be forgiven you,' importing an explicit theology of forgiveness.

Gen 4:10

קל דם זרעין דעתידין למיפק מן אחוך קול דמי אחיך צעקים

'The voice of your brother's bloods crying' becomes 'the voice of the blood of the seeds destined to come forth from your brother.' Onkelos follows the midrashic reading (Sanhedrin 37b): the plural דמי embraces Abel's unborn descendants, murdered with him.

Gen 4:13

סגי חובי מלמשבק גדול עוני מנשוא

'My iniquity is too great to bear' becomes 'my guilt is too great to be forgiven.' Onkelos reads נשא as 'forgive' (נשא עון) rather than 'carry,' turning Cain's complaint about unbearable punishment into a theological claim about unforgivability.

Gen 4:14

ומן קדמך לית אפשר לאטמרא ומפניך אסתר

'From Your face I shall hide' becomes 'from before You it is impossible to hide.' Onkelos corrects the theology outright: concealment from God is not merely something Cain will attempt — it is impossible.

Gen 4:15

לשבעא דרין יתפרע מנה שבעתים יקם

'Sevenfold vengeance' is quantified midrashically: 'for seven generations it shall be exacted from him.' The abstract sevenfold becomes a concrete generational span.

Gen 4:16

ארעא גלי ומטלטל דהוה עבידא עלוהי מלקדמין ארעָנוד

The proper noun נוד is etymologized — 'a land of exile and wandering' (from נד, to wander) — and Onkelos adds 'that was prepared for him beforehand,' folding providence into the geography of Cain's punishment.

RASHI

Rashi on the day's aliyah

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Every comment Rashi wrote on today's aliyah, in full — thirty-four glosses, from 'כאחד ממנו היה' at the garden's gate to Lemech's genealogy.

היה כאחד ממנו.

הֲרֵי הוּא יָחִיד בַּתַּחְתּוֹנִים כְּמוֹ שֶׁאֲנִי יָחִיד בָּעֶלְיוֹנִים, וּמַה הִיא יְחִידוּתוֹ? לְדַעַת טוֹב וָרָע, מַה שֶּׁאֵין כֵּן בִּבְהֵמָה וְחַיָּה

היה כאחד ממנו *IS BECOME LIKE ONE OF US (or, like the Being who is One, Unique amongst us) — Lo, he is unique among the terrestrial ones, even as I am unique among the celestial ones.*

And in what does his uniqueness consist?

In knowing good and evil, which is not so in the case of cattle and beasts (Genesis Rabbah 21:5).

ועתה פן ישלח ידו.

וּמִשֶּׁיִּחְיֶה לְעוֹלָם הֲרֵי הוּא קָרוֹב לְהַטְעוֹת הַבְּרִיּוֹת אַחֲרָיו, וְלוֹמַר אַף הוּא אֱלוֹהַּ. וְיֵשׁ מִדְרְשֵׁי אַגָּדָה, אֲבָל אֵין מְיֻשָּׁבִין עַל פְּשׁוּטוֹ:

ועתה פן ישלח ידו *AND NOW, LEST HE PUT FORTH HIS HAND... [AND EAT AND LIVE FOR EVER] — And if he does live forever he is likely to lead people astray, so that they may say, "He, also, is a god";*

there are also Agadic Midrashim, but they are not in keeping with its (the verse's) plain sense.

מקדם לגן עדן.

בְּמִזְרָחוֹ שֶׁל גַּן עֵדֶן חוּץ לַגָּן:

מקדם לגן עדן *AT THE EAST OF THE GARDEN OF EDEN — Not in the eastern part of the Garden but eastward of the garden of Eden and outside the garden.*

את הכרובים.

מַלְאֲכֵי חַבָּלָה:

את הכרבים *THE CHERUBIM — Angels of destruction (Exodus Rabbah 9:11).*

החרב המתהפכת.

וְלֶהָט לַהַט לְאֵימָה עָלָיו מִלְּכָנֵס עוֹד לַגָּן תַּרְגּוּם לַהַט שְׁנַן,

החרב המתהפכת *THE SWORD TURNING ITSELF — It was a revolving sword and consequently had a* להט*, a flashing flame for the purpose of frightening him so that he should not enter again into the garden.*

The Targum of להט*, however, is* שנן*, like (Sanhedrin 82a)* שלף שננא *he drew his blade;*

כְּמוֹ שָׁלַף שְׁנָנָא וּבְלָשׁוֹן לַעַז לא"מא וּמִדְרְשֵׁי אַגָּדָה יֵשׁ, וַאֲנִי אֵינִי בָּא אֶלָּא לְפִשׁוּטוֹ:

old French lame.

There are Agadic Midrashim, but I come only to explain it according to its plain sense.

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והאדם ידע.

כְּבָר קֹדֶם הָעִנְיָן שֶׁל מַעְלָה, קֹדֶם שֶׁחָטָא וְנִטְרַד מִגַּן עֵדֶן, וְכֵן הַהֵרָיוֹן וְהַלֵּדָה, שֶׁאִם כָּתַב וַיֵּדַע אָדָם,

(1) והאדם ידע AND THE MAN KNEW already before the events related above took place — before he sinned and was driven out of the Garden of Eden.

נִשְׁמַע שֶׁלְּאַחַר שֶׁנִּטְרַד הָיוּ לוֹ בָּנִים:

So, also, the conception and birth of Cain took place before this.

Had it been written, וידע אדם it would imply that after he was driven out children were born to him (Genesis Rabbah 22:2).

קין.

עַל שֵׁם קָנִיתִי:

קין — She called him so with reference to her use of the word.

את ה'.

כְּמוֹ עִם ה', כְּשֶׁבָּרָא אוֹתִי וְאֶת אִישִׁי,

את קניתי; — ‘ה עם is like “with the Lord”;

she meant to say:

הוּא לְבַדּוֹ בְּרָאָנוּ אֲבָל בָּזֶה שֻׁתָּפִים אָנוּ עִמּוֹ (נדה ל"א):

when He created me and my husband He created us by Himself, but in the case of this one we are copartners with Him (cf.

Niddah 31a).

את קין את אחיו את הבל.

ג' אֶתִּים רִבּוּיִים הֵם, מְלַמֵּד, שֶׁתְּאוֹמָה נוֹלְדָה עִם קַיִן, וְעִם הֶבֶל נוֹלְדוּ שְׁתַּיִם, לְכָךְ נֶאֱמַר וַתֹּסֶף (בראשית רבה):

את קין... את אחיו את הבל —The threefold ‘את’ signify extension of the scope of the text, teaching that a twin sister was born with Cain, and that with Abel two were born;

consequently the text states ותוסף “and she bore more” than the previous time (Genesis Rabbah 22:3).

רעה צאן.

לְפִי שֶׁנִּתְקַלְּלָה הָאֲדָמָה פֵּרֵשׁ לוֹ מֵעֲבוֹדָתָהּ:

רעה צאן A FEEDER OF FLOCKS — Because the earth had been cursed he refrained from cultivating it.

מפרי האדמה.

מִן הַגָּרוּעַ, וְיֵשׁ אַגָּדָה שֶׁאוֹמֶרֶת זֶרַע פִּשְׁתָּן הָיָה:

מפרי האדמה OF THE FRUIT OF THE GROUND —of the worst fruits (Genesis Rabbah 22:5);

there is an Agada which says that it was linseed (Midrash Tanchuma, Bereshit 9).

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וישע.

וַיִּפֶן, וְכֵן וְאֶל מִנְחָתוֹ לֹא שָׁעָה לֹא פָּנָה, וְכֵן וְלֹא יִשְׁעֶה (ישעיהו י"ז) לֹא יִפְנֶה,

וישע *AND HE HAD REGARD— and He turned to;*

וְכֵן שְׁעֵה מֵעָלָיו (איוב י"ד) פְּנֵה מֵעָלָיו:

similarly in the next verse "He had no respect for his offering" means, "He did not turn to it." Similarly, (Isaiah 17:8) ולא ישעה אל המזבחות *which means "And he shall not turn towards the altars";*

so also (Job 14:6) שעה מעליו *"turn away from him" — disregard him.*

וישע.

יָרְדָה אֵשׁ וְלִחֲכָה מִנְחָתוֹ:

וישע *AND HE HAD REGARD — Fire descended from heaven and consumed his offering.*

הלא אם תיטיב.

כְּתַרְגּוּמוֹ פֵּרוּשׁוֹ:

הלא אם תטיב *IF THOU MENDEST — Its meaning is as the Targum gives it: "if thou wilt improve thy doings, thou shalt be forgiven".*

לפתח חטאת רובץ.

לְפֶתַח קִבְרְךָ חֶטְאֲךָ שָׁמוּר:

לפתח חטאת רובץ *SIN CROUCHETH AT THE ENTRANCE — Right up to the door of your grave (until your death) your sin will be preserved.*

ואליך תשוקתו.

שֶׁל חַטָּאת הוּא יֵצֶר הָרָע, תָּמִיד שׁוֹקֵק וּמִתְאַוֶּה לְהַכְשִׁילְךָ:

ואליך תשוקתו *AND UNTO THEE IS ITS LONGING — The longing of sin;*

it refers to the evil inclination.

This is continually longing and desiring to make you sin.

ואתה תמשל בו.

אִם תִּרְצֶה תִּתְגַּבֵּר עָלָיו:

ואתה תמשול בו *NEVERTHELESS THOU MAYEST RULE OVER IT — If you desire to, you can gain the victory over it (Kiddushin 30b).*

ויאמר קין אל הבל.

נִכְנַס עִמּוֹ בְּדִבְרֵי רִיב וּמַצָּה לְהִתְעוֹלֵל עָלָיו לְהָרְגוֹ. וְיֵשׁ בָּזֶה מִדְרְשֵׁי אַגָּדָה, אַךְ זֶה יִשּׁוּבוֹ שֶׁל מִקְרָא:

ויאמר קין אל הבל *AND CAIN SPAKE TO ABEL — He began an argument, striving and contending with him, to seek a pretext to kill him.*

There are Midrashic explanations of these words, but this is the plain sense of the text.

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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אי הבל אחיך.

לְכָנֵס עִמּוֹ בְּדִבְרֵי נַחַת, אוּלַי יָשׁוּב וְיֹאמַר: אֲנִי הֲרַגְתִּיו וְחָטָאתִי לְךָ:

איה הבל אחיך *WHERE IS ABEL THY BROTHER — thus entering into a friendly conversation with him:*

perhaps he might repent and say, "I have killed him, and sinned against You" (Genesis Rabbah 19:11).

לא ידעתי.

נַעֲשָׂה כְּגוֹנֵב דַּעַת הָעֶלְיוֹנָה:

לא ידעתי *I KNOW NOT — He became a deceiver of the Most High (i. e. he persuaded himself that he could deceive Him) (Numbers Rabbah 20:6).*

השומר אחי.

לְשׁוֹן תֵּמַהּ הוּא, וְכֵן כָּל הֵ"א הַנִּקּוּדָה בַּחֲטַף פַּתָּח:

השומר אחי אנכי *AM I MY BROTHER'S KEEPER — This is a question.*

Similarly, wherever ה' has a חטף פתח *it introduces a question.*

דמי אחיך.

דָּמוֹ וְדַם זַרְעִיּוֹתָיו. דָּבָר אַחֵר, שֶׁעָשָׂה בּוֹ פְּצָעִים הַרְבֵּה,

דמי אחיך *THY BROTHERS BLOOD — דמי is plural — bloods" — his blood and the blood of his possible descendants (Genesis Rabbah 22:9).*

שֶׁלֹּא הָיָה יוֹדֵעַ מֵהֵיכָן נַפְשׁוֹ יוֹצְאָה (סנהדרין ל"ז):

Another explanation of why the plural is used:

he inflicted upon him many wounds, because he knew not whence his soul would depart (i. e. which blow would prove fatal) (Sanhedrin 37b).

ארור אתה מן האדמה.

יוֹתֵר מִמַּה שֶּׁנִּתְקַלְּלָה הִיא כְּבָר בַּעֲוֹנָהּ, וְגַם בָּזוֹ הוֹסִיפָה לַחֲטֹא,

ארור אתה מן האדמה *CURSED BE THOU FROM THE GROUND or, MORE THAN THE GROUND — More than the ground has already been cursed on account of its sin (cf.*

Rashi on Genesis 1:11):

in this, too, it has again sinned

אשר פצתה את פיה לקחת את דמי אחיך וגו'.

וְהִנְנִי מוֹסִיף לָהּ קְלָלָה אֶצְלְךָ, לֹא תֹסֵף תֵּת כֹּחָהּ:

אשר פצתה את פיה לקחת את דמי אחיך *IN THAT IT HATH OPENED ITS MOUTH TO TAKE THY BROTHER'S BLOOD:*

therefore do I impose upon it an additional curse regarding you—"it shall not henceforth yield unto thee its strength".

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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נע ונד.

אֵין לְךָ רְשׁוּת לָדוּר בְּמָקוֹם אֶחָד:

נע ונד *A VAGABOND AND A WANDERER — You shall not be permitted to dwell in one place.*

עוני מנשוא.

בִּתְמִיהָה, אַתָּה טוֹעֵן עֻלְיוֹנִים וְתַחְתּוֹנִים, וַעֲוֹנִי אִי אֶפְשָׁר לִטְעֹן? (בראשית רבה)

גדול עוני מנשוא *MY PUNISHMENT IS GREATER THAN I CAN BEAR (literally, my sin is greater than what can be borne) — This is a question:*

You bear the worlds above and below.

and is it impossible for You to bear my sin?

(Genesis Rabbah 22:11).

לכן כל הורג קין.

זֶה אֶחָד מִן הַמִּקְרָאוֹת שֶׁקִּצְרוּ דִּבְרֵיהֶם וְרָמְזוּ וְלֹא פֵּרְשׁוּ, לָכֵן כָּל הֹרֵג קַיִן לְשׁוֹן גְּעָרָה, כֹּה יֵעָשֶׂה לוֹ,

כָּךְ וְכָךְ עָנְשׁוֹ וְלֹא פֵּרֵשׁ עָנְשׁוֹ:

לכן כל הרג קין *VERILY, WHOSOEVER SLAYETH CAIN — This is one of the verses where the construction is elliptical (literally, which abbreviate their statements), which give only a suggestion and do not fully explain. “Verily, whosoever slayeth Cain” express a threat, suggesting the consequence — “thus shall be done to him”, “thus and thus shall be his punishment”, without explicitly explaining what the punishment would be.*

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שבעתים יקם.

אֵינִי רוֹצֶה לְהִנָּקֵם מִקַּיִן עַכְשָׁו, לְסוֹף שִׁבְעָה דוֹרוֹת אֲנִי נוֹקֵם נְקָמָתִי מִמֶּנּוּ,

שֶׁיַּעֲמֹד לֶמֶךְ מִבְּנֵי בָנָיו וְיַהַרְגֵהוּ,

שבעתים יקם *VENGEANCE SHALL BE TAKEN SEVENFOLD — God says, I do not wish to take vengeance on Cain now, but at the end of seven generations I will execute my vengeance upon him, that Lamech, one of his descendants, will arise and slay him.*

וְסוֹף הַמִּקְרָא שֶׁאָמַר שִׁבְעָתַיִם יֻקַּם, וְהִיא נְקָמַת הֶבֶל מִקַּיִן,

The end of this verse which states, "vengeance shall be taken in the seventh generation" — which is the vengeance taken on Cain for Abel — teaches us that the first part of the verse is a threat made in order that no creature might injure him.

לְמָדְנוּ שֶׁתְּחִלַּת מִקְרָא לְשׁוֹן גְּעָרָה הִיא, שֶׁלֹּא תְהֵא בְרִיָּה מַזִּיקַתּוּ,

A similar elliptical expression is the following:

וְכֵיוֹצֵא בּוֹ וַיֹּאמֶר דָּוִד כָּל מַכֵּה יְבֻסִי וְיִגַּע בַּצִּנּוֹר (שמואל ב ה'), וְלֹא פֵּרֵשׁ מַה יֵּעָשֶׂה לוֹ,

אֲבָל דִּבֵּר הַכָּתוּב בְּרֶמֶז כָּל מַכֵּה יְבֻסִי וְיִגַּע בַּצִּנּוֹר וְיִקְרַב אֶל הַשַּׁעַר וְיִכְבְּשֶׁנּוּ וְאֶת הָעִוְרִים וגו',

(2 Samuel 5:8) "And David said, whosoever smiteth the Jebusites and getteth up to the gutter" — but it does not explicitly state what would be done to that person.

וְגַם אוֹתָם יַכֶּה עַל אֲשֶׁר אָמְרוּ הָעִוֵּר וְהַפִּסֵּחַ לֹא יָבֹא דָוִד אֶל תּוֹךְ הַבַּיִת

Scripture, however, here speaks by a suggestion only, meaning, whosoever smiteth the Jebusites and getteth up to the gutter and approacheth the gate and conquereth it and the blind etc. ... slaying also them (the blind and the lame) because they said, "there are the blind and the lame:

הַמַּכֶּה אֶת אֵלּוּ אֲנִי אֶעֱשֶׂנּוּ רֹאשׁ וְשַׂר, כָּאן קִצֵּר דְּבָרָיו,

David cannot come into the house" — he who smiteth these, I shall make him chief and captain.

וּבְדִבְרֵי הַיָּמִים פֵּרֵשׁ יִהְיֶה לְרֹאשׁ וּלְשָׂר:

Here (in the Book of Samuel) it abridges the narrative, but in Chronicles (1 Chronicles 11:6) it explicitly states, "he shall become chief and captain."

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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וישם ה' לקין אות.

חָקַק לוֹ אוֹת מִשְׁמוֹ בְּמִצְחוֹ. ס"א דָּבָר אַחֵר, כָּל מוֹצְאֵי יַהֲרְגֵנִי, הַבְּהֵמוֹת וְהַחַיּוֹת,

לקין אות וישם ה' *AND THE LORD SET A SIGN FOR CAIN — He inscribed on his forehead a letter of His Divine Name (Pirkei DeRabbi Eliezer 21).*

אֲבָל בְּנֵי אָדָם עֲדַיִן לֹא הָיוּ שָׁיְרָא מֵהֶם, רַק אָבִיו וְאִמּוֹ, וּמֵהֶם לֹא הָיָה יָרֵא שֶׁיַּהַרְגוּהוּ,

Other editions of Rashi add the following:

another interpretation of "Whoever will find me will slay me":

אֶלָּא אָמַר עַד עַכְשָׁו הָיָה פַּחְדָּתִי עַל כָּל הַחַיּוֹת כְּמ"שׁ וּמוֹרַאֲכֶם וְגוֹ',

this refers to cattle and beasts, since there were then no human beings in the world of whom he might be afraid except his father and mother, and, of course, he did not fear that they would slay him.

וְעַכְשָׁו בִּשְׁבִיל עָוֹן זֶה לֹא יִירְאוּ מִמֶּנִּי הַחַיּוֹת וְיַהַרְגוּנִי, מִיָּד וַיָּשֶׂם ה' לְקַיִן אוֹת הֶחֱזִיר אֶת מוֹרָאוֹ עַל הַחַיּוֹת:

He, therefore, said, "Until now the fear of me was upon all animals — as it is written", (Genesis 9:2) "And the fear of you shall be upon all beasts of the field" etc. — now, however, because of my sin the animals will no longer fear me and will kill me.

God immediately set a sign for Cain, viz., he again made the animals be in fear of him.

ויצא קין.

יָצָא בְּהַכְנָעָה כְּגוֹנֵב דַּעַת הָעֶלְיוֹנָה:

ויצא קין *AND CAIN WENT AWAY — He went away in pretended humility as though he would deceive the Most High (Genesis Rabbah 22:13).*

בארץ נוד.

בָּאָרֶץ שֶׁכָּל הַגּוֹלִים נָדִים שָׁם:

בארץ נוד *IN THE LAND OF NOD — In the land where all exiles wander about.*

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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קדמת עדן.

שָׁם גָּלָה אָבִיו כְּשֶׁגֹּרַשׁ מִגַּן עֵדֶן,

קדמת עדן *ON THE EAST OF EDEN — Thereto his father went into exile when he was driven out from the Garden of Eden.*

שֶׁנֶּאֱמַר וַיַּשְׁכֵּן מִקֶּדֶם לְגַן עֵדֶן אֶת שְׁמִירַת דֶּרֶךְ מְבוֹא הַגָּן, שֶׁיֵּשׁ לִלְמֹד שֶׁהָיָה אָדָם שָׁם,

as it is said, (3:24) "And He placed in the east of the Garden of Eden" a watch on the road that leads to the entrance of the Garden, from which one may infer that Adam was there (in the East) (Genesis Rabbah 21:9).

וּמָצִינוּ רוּחַ מִזְרָחִית קוֹלֶטֶת בְּכָל מָקוֹם אֶת הָרוֹצְחִים שֶׁנֶּאֱמַר אָז יַבְדִּיל מֹשֶׁה וְגוֹמֵר, מִזְרָחָה שֶׁמֶשׁ (דברים ד'), דָּבָר אַחֵר בְּאֶרֶץ נוֹד,

Indeed, we find, also, that the Eastern quarter always forms a place of refuge for murderers, as it is said, (Deuteronomy 4:41) "Then Moses set aside three cities of refuge towards the place of sun-rise [that a murderer might flee thither]." Another explanation of בארץ נוד *IN THE LAND OF NOD — (taking* נוד *in the sense of "movement") — wherever he went the earth quaked beneath him, and people said, "Turn away from him:*

כָּל מָקוֹם שֶׁהוֹלֵךְ הָיְתָה הָאָרֶץ מִזַּדַּעְזַעָה תַּחְתָּיו, וְהַבְּרִיּוֹת אוֹמְרִים סוּרוּ מֵעָלָיו, זֶהוּ שֶׁהָרַג אֶת אָחִיו:

this is the man who killed his brother" (Midrash Tanchuma, Bereshit 9).

ויהי קין בונה עיר ויקרא שם

הָעִיר לְזֵכֶר בְּנוֹ חֲנוֹךְ:

ויהי *AND HE WAS— Cain was, not Enoch —* בונה עיר *BUILDING A CITY* ויקרא שם העיר *AND HE CALLED THE NAME OF THE CITY (named the city) as a memorial of his son —* חנוך.

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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ועירד ילד.

יֵשׁ מָקוֹם שֶׁהוּא אוֹמֵר בְּזָכָר הוֹלִיד וְיֵשׁ מָקוֹם שֶׁהוּא אוֹמֵר יָלַד, שֶׁהַלְּדָה מְשַׁמֶּשֶׁת שְׁתֵּי לְשׁוֹנוֹת,

חנוך. AND IRAD BEGET — There are passages where it says of the male הוליד, and there are places where it says ילד, because this root ילד is used in two senses:

לֵדַת הָאִשָּׁה נישׁ"טרא בְּלַעַז וּזְרִיעַת תּוֹלְדוֹת הָאִישׁ אינזי"ראר בְּלַעַז.

in reference to a woman giving birth to a child through the agency of a male old French naitre;

English to give birth to and the act of begetting by a man old French engendrer;

כְּשֶׁהוּא אוֹמֵר הוֹלִיד בִּלְשׁוֹן הִפְעִיל, מְדַבֵּר בְּלֵדַת הָאִשָּׁה

English engender, beget.

פְּלוֹנִי הוֹלִיד אֶת אִשְׁתּוֹ בֵּן אוֹ בַת, כְּשֶׁהוּא אוֹמֵר יָלַד, מְדַבֵּר בִּזְרִיעַת הָאִישׁ:

When it says הוליד, [in the Hiphil form] it speaks of the man in his relation to the act of giving birth by the woman — this or that man caused his wife to give birth to a son or daughter;

when it says ילד it refers to the act of begetting by the man himself.

HOW RASHI USES HIS SOURCES

Import, pivot, compress

On Genesis 3:24 Rashi works his sources two ways in two lines. 'מלאכי חבלה — את הכרובים': two Hebrew words lifted whole from Shemot Rabbah 9:11 — the cherubim are not putti but angels of destruction, and Rashi imports the identification verbatim. On the very next dibur, 'החרב המתהפכת,' he pivots: 'There are Agadic Midrashim, but I come only to explain it according to its plain sense' — grounding להט in Targum's שנן (cf. Sanhedrin 82a, שלף שננא) and Old French. Same verse, two methods: wholesale midrash import, then an explicit peshat-against-aggadah pivot.

On 4:1, 'והאדם ידע,' Rashi compresses Bereshit Rabbah 22:2 into a chronological rescue: the wayyiqtol וידע is read as pluperfect — Adam knew Chava before the expulsion — because 'had it been written אדם וידע, it would imply children came only after the driving-out.' The midrash's solution becomes Rashi's grammar: narrative sequence bent, by a single vowel pattern, to protect the timeline.

WORD STUDIES

The verb, the Name, the firstborn

Three words from the aliyah: the verb that carries the judgment, the Name that enters the dialogue, and the firstborn who becomes the first murderer. (Maagarim's Historical

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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Dictionary was unreachable from our network today, so these studies lean on Klein, Jastrow, and BDB. Note: CAL, the Comprehensive Aramaic Lexicon, prohibits scraping, so Aramaic coverage here is Jastrow and BDB via Sefaria.)

אמר

Klein · אמר I

BDB · אמר

— vb. utter, say (MI Ph. אמר, Aramaic אמר, Ethiopic I. 2 shew, declare, Arabic command; perhaps אמר orig. = be or make prominent, hence Hithp. infr., אמיר; Sab. אמר lofty, epith. of king JHMordtmZMG 1876,

BDB Aramaic · אמר

— vb. say, tell, command (BH אמר);—

ויאמר — eight times it punctuates the aliyah, and it is never small talk. BDB traces אמר to 'utter, say,' with cognates across Semitic (Phoenician, Aramaic אמר, Arabic 'command'), the root perhaps meaning 'to make prominent' — speech as making something stand out. Here the verb carries the whole drama: God speaks the expulsion decree (3:22), interrogates the murderer ('אי הבל אחיך,' 4:9), and pronounces the curse (4:10-12); Kayin answers back, and the dialogue tightens into the first human argument with God (4:13-14). The verb that opened creation — 'יהי אור, ויאמר אלקים' — now opens judgment.

יְהוָֹה

Klein · יהוה

m.n.

— the proper name of God in the Bible, Tetragrammaton.

BDB · יהוה

— 6823 i.e. יהוה n.pr.dei Yahweh, the proper name of the God of Israel—(1. MT יהוה6518 (Qr אדני), or יהוה305 (Qr אלקים), in the combinations יהוה אדני & אדני יהוה (vid. אדני), and with prep. ביהוה, ל

BDB · יהוה[2]

— n.pr.dei, v. sub הוה p. 217 ff.

יהוה — Klein defines it flatly: 'the proper name of God in the Bible, Tetragrammaton'; BDB reconstructs יהוה and notes the Masoretic qere perpetuum that keeps the name unread, always substituted. In this aliyah the Name does heavy narrative work: it seals the expulsion (3:22-23), then Chava cries 'קניתי איש את־יהוה' (4:1) — the first human being to speak the Name aloud, binding her newborn's naming to it. Then the Name enters dialogue: God questions Kayin, Kayin bargains ('גדול עוני מנשוא'), and the Name marks him and lets him live (4:15). From decree to dialogue — the proper name becomes a character in the story.

קוּן

Jastrow · קון

— to arrange, order, plan (applied to art, cmp. חרש; to music, v. קינה).

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

DAILY READER

PARSHAT BERESHIT

What 'first' means — in the womb, in the garden, and at the first grave.

Wednesday, 7 October 2026 · Aliyah 4/7 (Genesis 3:22-4:18) · Daf Bekhorot 19

Jastrow · קין

pr. n. m.

— (b. h.) Cain, son of Adam. Snh. IV, 5 שכן מצינו בק' וכ' for so we find with reference to Cain when he had killed his brother &c.; Ib. 37b מלמד שעשה ק' וכ' this use of the plural (דמי, Gen. IV, 10) shows that C. inflicted

Jastrow · *קין

— , Pa. קיין (v. קון) to arrange, shape. Gen. R. s. 23 קינן קנתורין Ar., v. קינטור.

קין — Chava supplies the etymology herself: 'קניתי,' I have acquired. Jastrow lists קין as the proper name of Adam's son, and beside it קון, 'to arrange, order, plan' — applied to art and music, cf. קינה, lament — a reminder that the name sits near making and shaping. In the aliyah Kayin is the firstborn, the first farmer, the first murderer, the first exile, the first city-builder (4:17): a catalogue of human firsts gone wrong. The rabbis made him the archetype — Sanhedrin reasons 'so we find with Cain' for the gravity of bloodshed — and the name travels on: Saramago's קין, this week's NLI record, retells Genesis through his eyes.

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr